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CITY OF BERKELEY

BERKELEY CITY COUNCIL SPECIAL MEETING

APRIL 22, 2025

>> MAYOR ISHII: HELLO, EVERYONE, IT IS 6:04. AND WE'RE GOING TO GET THIS SHOW ON THE ROAD. ARE WE READY?

>> JUST ABOUT. LET'S MAKE SURE WE ARE RECORDING. [RECORDING IN PROGRESS]

>> OKAY, WE'RE ALL GOOD, ROSE?

>> MAYOR ISHII: OKAY, HI, EVERYONE. SOUNDS LIKE WE'RE READY TO GO. I'M GOING CALL TO ORDER THE TUESDAY, APRIL 22ND, SPECIAL MEETING OF THE BERKELEY CITY COUNCIL. WE HAVE A QUORUM HERE. LET'S TAKE ROLL PLEASE.

>> OKAY. COUNCILMEMBER KESARWANI IS CURRENTLY ABSENT. COUNCILMEMBER TAPLIN.

>> R. KESARWANI: NO, I'M HERE, MR. CITY CLERK. I NEED TO USE ONE OF THOSE AUTHORIZED EXCUSES TO BE DOING THE MEETING VIA ZOOM.

>> AFTER THE ROLL WE'LL GO THROUGH THE SCRIPT.

>> OKAY, THANK YOU.

>> LET'S START OVER. COUNCILMEMBER KESARWANI IS PRESENT. COUNCILMEMBER TAPLIN.

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>> T. TAPLIN: PRESENT.

>>COUNCILMEMBER BARTLETT IS ABSENT. COUNCILMEMBER TREGUB.

>> I. TREGUB: PRESENT.

>> COUNCILMEMBER O'KEEFE.

>> S. O'KEEFE: PRESENT.

>> COUNCILMEMBER BLACKABY.

>> HERE.

>> COUNCILMEMBER HUMBERT.

>> M. HUMBERT: HERE.

>> COUNCILMEMBER KESARWANI IS PARTICIPATING IN THE MEETING REMOTELY PURSUANT TO BROWN ACT AS AMENDED BY AB2249 UNDER THE EMERGENCY CIRCUMSTANCES JUSTIFICATION. A QUORUM OF THE COUNCIL IS PRESENT AT THE NOTICED PHYSICAL LOCATION IDENTIFIED ON THE AGENDA AND WITHIN THE BOUNDARIES OF THE AGENCY. VICE MAYOR KESARWANI, IF YOU COULD PROVIDE A GENERAL DESCRIPTION OF THE CIRCUMSTANCES RELATING TO YOUR NEED TO APPEAR REMOTELY. THAT WOULD BE MEDICAL DIAGNOSIS, FAMILY CAREGIVING NEED OR COMMUNICABLE DISEASE.

>> R. KESARWANI: MY REASON IS A FAMILY CAREGIVING NEED.

>> IF YOU COULD DISCLOSE IF THERE ARE INDIVIDUALS 18 YEARS OF AGE OR OLDER ARE PRESENT IN THE ROOM WHERE YOU ARE PARTICIPATING AND THE NATURE OF THE RELATIONSHIP.

>> R. KESARWANI: THERE IS NOT.

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>> SHE WILL PARTICIPATE THROUGH AUDIO AND VIDEO TECHNOLOGY. THAT SATISFIED THE BROWN ACT AND WE CAN PROCEED WITH THE MEETING.

>> MAYOR ISHII: THANK YOU. I WANT TO CHECK AND SEE IF ANY COUNCILMEMBERS HAVE ANY EX PARTE CONTACTS THAT THEY WOULD LIKE TO DISCLOSE. I KNOW COUNCILMEMBER TAPLIN IS NOT IN THE ROOM. I WANT TO CHECK BACK IN WITH HIM BEFORE HE JUST IN CASE. BUT I DO WANT TO DISCLOSE MY STAFF MET WITH THE APPLICANT AND APPELLANT TO DISCUSS THEIR PROSPECTIVES ON THE PRODUCT. COUNCILMEMBER TREGUB?

>> I. TREGUB: OUR OFFICE MET WITH SEVERAL NEIGHBORS IN SEVERAL DISTRICTS FOR CONSTITUENTS BOTH IN OPPOSITION TO THE PROJECT AS WELL AS IN SUPPORT OF THE PROJECT.

>> MAYOR ISHII: AND COUNCILMEMBER, I DON'T KNOW IF YOU'VE SUBMITTED THAT DOCUMENTATION. JUST WANT TO MAKE SURE YOU DO THAT TO THE CLERK.

>> I. TREGUB: YEAH, I DID NOT RECEIVE THE FORM. BUT WOULD BE HAPPY TO COMPLETE IT FORTH WITH ONCE RECEIVED.

>> MAYOR ISHII: YES, COUNCILMEMBER O'KEEFE.

>> S. O'KEEFE: I MET WITH PATRICK KENNEDY. I'LL SUBMIT THE PUBLIC WORKS.

>> MAYOR ISHII: THANK YOU VERY MUCH. AND CLERK, I WANT TO MAKE SURE THAT COUNCILMEMBER TREGUB CAN STILL GET HIS DOCUMENTATION IN? OKAY. THANK YOU. YES, COUNCILMEMBER LUNAPARRA.

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>> C. LUNAPARRA: MY STAFF SPOKE WITH THE APPELLANT, AND I SPOKE WITH THE APPLICANT AND I'LL FILL OUT THE PUBLIC WORKS ALSO. THANKS.

>> LIKEWISE, MY TEAM AND I MET WITH THE APPELLANT, I THINK WE FILLED OUT THE PAPERWORK. WE DO --

>> MAYOR ISHII: BECAUSE COUNCILMEMBER TAPLIN IS NOT IN THE ROOM, IF HE HAS MET WITH SOMEONE WE'LL WE JUST --

>> [OFF MIC]

>> MAYOR ISHII: I JUST WANT TO MAKE SURE HE GETS A CHANCE TO DISCLOSE.

>> HE HAD DISCLOSURE BEFORE WE OPENED THE PUBLIC HEARING.

>> MAYOR ISHII: YES. COUNCILMEMBER O'KEEFE.

>> S. O'KEEFE: I ALSO MET WITH THE MEMBERS OF THE SAVE THE U.A.

>> MAYOR ISHII: GREAT. ALL RIGHT. THANK YOU ALL SO MUCH. WE ARE GOING TO MOVE ONTO OUR ACTION CALENDAR WHICH HAS ONE ITEM, WHICH IS THE ZAB APPEAL FOR 2274 SHATTUCK AVENUE. WE'RE GOING TO START THIS EVENING WITH A STAFF REPORT. WE'LL HAVE A PRESENTATION FROM THE APPELLANT FOR 5 MINUTES, A PRESENTATION FROM THE APPLICANT FOR 5 MINUTES AND THEN OPEN UP FOR PUBLIC COMMENT BEFORE TAKING COUNCIL COMMENTS AND QUESTIONS SO FOLKS ARE CLEAR ABOUT WHAT THE STRUCTURE IS FOR THIS EVENING. WE'RE GOING TO START WITH A STAFF REPORT.

>> THERE IS NO NON-AGENDA PUBLIC MEETING AT A SPECIAL MEETING.

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ONLY AT A REGULAR MEETING OF THE CITY COUNCIL.

>> THANK YOU, MAYOR, DIRECTOR OF PLANNING AND DEVELOPMENT JOINED AT THE STAFF TABLE BY ANNE HERSCH, THE LAND USE PLANNING MANAGER AND SHARON ON THE PROJECTS TEAM. SHARON IS GOING TO MAKE THE PRESENTATION ON BEHALF OF STAFF.

>> THANK YOU, JORDAN. GOOD EVENING, MAYOR ISHII, COUNCILMEMBERS, AND THE PUBLIC. THIS HEARING IS FOR THE APPEAL ZAB ZP230079 FOR A PROJECT AT 2274 SHATTUCK AVENUE. I'M SHARON GONG THE PLANNER. I WILL GIVE AN OVERVIEW OF THE PROJECT AS APPROVED AND PRESENT THE POINTS AND STAFF'S RESPONSE. THE PROJECT SITE IS AN IRREGULAR PARCEL WITHIN THE DOWNTOWN PLAN MIXED USE DISTRICT, QUARTER SUBBED AREA WITH MAIN FRONTAGE ON SHATTUCK AND SECONDARY ON BANCROFT WAY. MIXED USE RESIDENTIAL RANGING HEIGHT FROM 1 TO 25 STORIES. THE SITE IS OCCUPIED BY THE UNITED ARTIST MOVIE THEATER CONSTRUCTED IN 1932 IN WHICH OPERATED UNTIL THE CLOSURE IN FEBRUARY 2023. THE PRODUCT PROPOSES TO DEMOLISH THE MOVIE THEATER EXCEPT FOR THE FRONT FACADE ON SHATTUCK AND THE THEATER BEHIND IT THE ONE STORY BEHIND THE FACADE ON SHATTUCK, RENOVATING -- RENOVATED AND INCORPORATED INTO THE NEW BUILDING AS A CAFÉ. THE PROJECT SENATE BILL 330 VESTED THE HISTORICAL RESOURCE STATUS AS NOT A CITY LANDMARK IN NOVEMBER 2022. VESTING PROHIBITING THE COMMISSION FROM DENYING THE DEMOLITION OF THE THEATER OR IMPOSING CONDITIONS ON THE PROJECT. THE DEMOLITION OF

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THE THEATER REFERRED TO LPC FOR REVIEW UNDER THE USE PERMIT APPLICATION. IN ADDITION, A LANDMARK INITIATION WAS SUBMITTED IN DECEMBER 2023 BY SAVE THE U.A. THEATER ORGANIZATION, THE APPELLANT IN THIS APPEAL. THE U.A. THEATER DESIGNATED AS A CITY LANDMARK IN MARCH OF 2024. THE LPC CONSIDERED THE REQUEST.

>> MAYOR ISHII: I'M SORRY, WE NEED TO TAKE A BRIEF RECESS. SOMETHING HAS COME UP. EXCUSE US. SO SORRY ABOUT THAT, SHARON. SORRY TO INTERRUPT. COUNCILMEMBER TAPLIN NEEDS TO RECUSE HIMSELF; I WANT TO TAKE CARE OF THAT BEFORE WE GO FURTHER.

>> T. TAPLIN: EVEN THOUGH I HAVE NOT ADVISED OF A CONFLICT, I'M RECUSING TO AVOID THE APPEARANCE OF A CONFLICT. GOOD EVENING.

>> MAYOR ISHII: OKAY, I THINK WE CAN CONTINUE ON WITH THE PRESENTATION. THANK YOU.

>> THANK YOU. IN ITS REVIEW LPC CONSIDERED THE REQUEST TO DESIGNATE THE ENTIRE THEATER BUILDING INCLUDING INTERIOR ELEMENTS AS A CITY LANDMARK, CHOSE TO DESIGNATE THE BUILDING FACADE AS THE DISTINGUISHING FEATURES TO BE PRESERVED. IN ITS DESIGNATION, THE LPC SPECIFICALLY IDENTIFIED THE UPPER PORTION OF THE BUILDING AND DECORATIVE FEATURES ON THE SLIDE AS THE CHARACTER DEFINING FEATURE THAT SHOULD BE PRESERVED AND PRESTORED. THE PROJECT'S IMPACT ON CULTURE RESOURCES UNDER C.E.Q.A. WAS NOT AFFECTED. TO GIVE A FRAMEWORK, I'LL PROVIDE INFORMATION ON THE STATE HOUSING ACCOUNTABLE ACTS AND ASSEMBLY

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BILL 1633. THE HOUSING ACCOUNTABILITY ACT WAS ENACTED IN 1982 AND STREAMLINES HOUSING DEVELOPMENT. AB1633 BECAME EFFECTIVE IN JANUARY 2024, WHICH MADE REVISIONS TO THE HOUSING ACCOUNTABILITY ACT TO ALLOW DEVELOPERS TO CLAIM THAT A VIOLATION OF THE HAA WAS MADE IF THE LOCAL AGENCY FAILS TO DETERMINE EXEMPTION FROM ENVIRONMENTAL REVIEW OR C.E.Q.A. FOR A PROJECT WHEN THE PROJECT IS ELIGIBLE. THE U.A. THEATER PROJECT APPLICANTS SUBMITTED A NOTICE ON MARCH 4TH, 2024, ALONG WITH TECHNICAL REPORTS TO SUPPORT EXEMPTION FROM C.E.Q.A. FOR THE PROJECT. ON OCTOBER 4, 2024, AFTER REVIEW, STAFF DETERMINED THE PROJECT WAS CATEGORICALLY EXEMPT FROM C.E.Q.A. BECAUSE THE PROJECT MEETS THE REQUIREMENTS FOR THE INFILL EXEMPTION. FURTHER STAFF THE PROJECT DETERMINED NO CHANGE TO THE HISTORICAL RESOURCE DUE TO THE PRESERVATION AND MAIN CHARACTER DEFINING; NAMELY, THE UPPER SHATTUCK FACADE. AND THEREFORE, THE PROJECT WOULD NOT MEET THE CRITERIA FOR THE HISTORICAL RESOURCE EXCEPTION TO THE EXEMPTION, WHICH WOULD HAVE DISQUALIFIED THE PROJECT FROM USING THE INFILL EXEMPTION. ON DECEMBER 12, 2024, THE ZONING ADJUSTMENT BOARD APPROVED THE USE PERMIT TO DEMOLISH THE THEATER, PRESERVING THE LOBBY AND UPPER FACADE, AND 183 FEET IN HEIGHT, 227 DWELLING UNITS, 23 VERY-LOW INCOME DENSITY BONUS -- AND A 900 SQUARE FOOT GROUND FLOOR CAFÉ. HERE'S A COMPARISON OF THE EXISTING FACADE AND PROPOSED BUILDING FACADE WITH A NEW 17 STORY VOLUME BEHIND

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IT. THIS SHOWS HOW THE PROJECT PROPOSES TO PRESERVE THE THEATER THAT WAS IDENTIFIED BY THE LPC IN ITS LANDMARK DESIGNATION. ON JANUARY 13, THE CITY CLERK RECEIVED A LETTER OF APPEAL ON BEHALF OF SAVE THE U.A. BERKELEY. NEXT I'LL SUMMARIZE THE MAIN POINTS OF THE APPEAL LETTER AND STAFF'S RESPONSE. IN THE FIRST APPEAL POINT, THE APPELLANT ASSERTS THE THEATER IS A MANDATORY RESOURCE IN THE CALIFORNIA REGISTER OF HISTORICAL RESOURCES. THAT ITS HISTORIC STATUS ENCOMPASSES MORE THAN THE FACADE AND SUBSTANTIAL DEMOLITION WOULD CAUSE A CHANGE IN ITS HISTORIC SIGNIFICANCE AND THEREFORE, THE HISTORIC RESOURCE EXCEPTION TO THE C.E.Q.A. EXEMPTION APPLIES. THE CITY RECOGNIZES THAT THE U.A. THEATER BUILDING IS AN HISTORIC RESOURCE AS DEFINED IN THE C.E.Q.A. GUIDELINES AND THE BUILDING AS A WHOLE WAS DESIGNATED IN THE CALIFORNIA REGISTER OF HISTORICAL RESOURCES IN 2006 BY THE STATE. HOWEVER THE APPLICANT SUBMITTED SUBSTANTIAL EVIDENCE THE BUILDING HAS BEEN SIGNIFICANTLY ALTERED OVER TIME, SUCH THAT THE CHARACTER DEFINING FEATURES NO LONGER CONVEY THE SIGNIFICANCE. THE EVALUATION EXTENSIVELY EVALUATED THE HISTORY OF ALTERATIONS TO THE BUILDING AND FOUND SIGNIFICANT LOSS OF INTEGRITY THAT NEGATES THE ABILITY TO CONVEY SIGNIFICANCE. THE PROJECT IMPACT ANALYSIS EVALUATED THE BUILDING'S CURRENT CONDITION AND PROPOSED PROJECTS CONSISTENCY WITH APPLICABLE SECRETARY OF STANDARDS FOR REHABILITATION. THE PIA CONCLUDED THE PROJECT WOULD NOT CAUSE

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SUBSTANTIAL ADVERSE CHANGE TO THE REMAINING CHARACTER DEFINING FEATURES OF THE THEATER BUILDING THAT THILL CONVEY SIGNIFICANCE; NAMELY, THE UPPER FRONT FACADE AND THE PROPOSED PROJECT IS CONSISTENT WITH THE SECRETARY OF INTERIOR STANDARDS FOR REHABILITATION. TO MAKE THE C.E.Q.A. DETERMINATION FOR THE PROJECT, STAFF REVIEWED ALL OF THE EVIDENCE IN THE RECORD, INCLUDING PROJECT APPLICATION MATERIALS, PLANS AND TECHNICAL REPORTS, CITY CONSULTANT PEER REVIEWS OF THE SUBMITTED TECHNICAL REPORTS INCLUDING THE HISTORIC RESOURCE REPORTS, THE LPC LANDMARK DESIGNATION NOTICE OF DETERMINATION AND FIND LEARNINGS CITY COUNCIL GUIDANCE AND CLOSED SESSION MEETING HELD IN SEPTEMBER 2024. STAFF ALSO CONSIDERED THE CITY CONSULTANT'S REVISED PIA, WHICH RECOMMENDED CONTRARY TO THE APPLICANT'S PIA, THE DEMOLITION READY RESULT IN CHANGE TO THE RESOURCE AND THE C.E.Q.A. EXEMPTION COULD NOT BE USED FOR THE PROJECT. UPON CONSIDERATION OF ALL OF THESE EVIDENCE, STAFF DETERMINED THAT THERE IS A SUBSTANTIAL EVIDENCE ON THE RECORD THAT THE PROJECT MEETS ALL OF THE REQUIREMENTS FOR A CLASS 32 INFILL EXEMPTION FROM THE C.E.Q.A. REVIEW. FURTHER, STAFF DETERMINED THAT THE PROJECT WOULD NOT RESULT IN A SUBSTANTIAL ADVERSE CHANGE TO THE U.A. THEATER HISTORICAL RESOURCE BECAUSE IT PROPOSES TO RETAIN THE UPPER SHATTUCK FACADE, THE CHARACTER FEATURE THAT EMBODIES THE HISTORICAL SIGNIFICANCE AND THEREFORE THE HISTORIC RESOURCE

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EXCEPTION WOULD NOT DISQUALIFY THE PROJECT FROM THE C.E.Q.A. EXEMPTION. IN THE SECOND APPEAL POINT, THE APPELLANT ARGUES THE CATEGORICAL EXEMPTION IS NOT CONSISTENT WITH THE DOWNTOWN AREA PLAN, POLICIES FOR PROTECTION OF HISTORIC THEATERS THAT SPECIFICALLY REFERENCE THE U.A. THEATER. THE CITY'S DOWNTOWN AREA PLAN IS COMPRISED OF BLAHED POLICIES AND GOAL THAT GUIDE DEVELOPMENT IN THE DOWNTOWN DISTRICT, INCLUDES POLICIES AND GOALS THAT ENCOURAGE THE RETENTION AND EXPANSION OF CINEMA, LIVE THEATER AND MUSIC TO STRENGTHEN THE DOWNTOWNS FOR THESE TYPES OF ARTS. SPECIFICALLY, THE ECONOMIC DEVELOPMENT POLICY ED1.7, ENTERTAINMENT AND CULTURE IN THE DAP SPEAKS TO THE GOAL OF PRESERVING CINEMA IN THE DOWNTOWN. A PHOTOGRAPH OF THE THEATER'S FACADE IS INCLUDED IN THIS POLICY SECTION AND THE THEATER IS DESCRIBED AS A BUILDING THAT HELPS TO CONTRIBUTE THE SPECIAL SENSE OF PLACE THAT DISTINGUISHES DOWNTOWN FROM OTHER DESTINATIONS ALONG WITH THE CALIFORNIA THEATER AND MUSIC LOVE AND LIVE THEATER VENUES IN THE AREA. THE PROJECT COMPLIES WITH THE POLICY BY PRESERVE AS MUCH OF THE THEATER AT FEASIBLE, THE FRONT FACADE AND LOBBY. A MEMO SUBMITTED BY THE STRUCTURAL ENGINEER TO THE LPC FOR LANDMARK REVIEW CONCLUDED SUBSTANTIAL DEMOLITION OF THE THEATER WOULD BE REQUIRED IN ORDER TO BRING INTO COMPLIANCE WITH SEISMIC AND BUILDING CODE AND THAT PRESERVATION OF THE LARGER BUILDING IS NOT FEASIBLE. AND

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DOWNTOWN AREA PLAN GOALS AND POLICIES. AS DISCUSSED IN THE ZAB STAFF REPORT. AND THE BOARD APPROVED THE PROJECT ACCORDINGLY. IN THE THIRD APPEAL POINT, THE APPELLANT ASSERTS THAT THE PROJECT DESCRIPTION RELIED UPON IN THE ZAB'S REVIEWS IS NOT FINITE OR STABLE AND INADEQUATE FOR THE CATEGORICAL EXEMPTION PER THE APPLICANT'S RECENT PUBLIC ASSERTIONS THE APPLICATION WOULD BE SUBSTANTIALLY MODIFIED. THE C.E.Q.A. -- THAT IS DESCRIBED IN THE USE PERMIT APPROVED BY ZAB ON DECEMBER 12, 2024. ANY SUBSTANTIAL CHANGE TO THE PROJECT AS APPROVED WOULD BE REQUIRED TO UNDERGO A USE PERMIT MODIFICATION SUBJECT TO A NEW STAFF REVIEW, INCLUDING ANY REVIEW PURSUANT TO C.E.Q.A., AND A DECISION BY THE ZAB ON THE MODIFIED PROJECT. TO DATE, NO APPLICATION TO MODIFY THE APPROVED PROJECT HAS BEEN SUBMITTED TO THE CITY. IN THE FORTH APPEAL POINT, THE APPELLANT ASSERTS A DUE PROCESS VIOLATION IN THE ZAB PROCEEDINGS BASED ON THE REPRESENTATION AND THE APPLICANT'S LETTER TO THE ZAB THAT THE CITY APPROVED THE CLASS 32 CATEGORICAL EXEMPTION IN OCTOBER OF 2024 AFTER DELIBERATION BY THE CITY COUNCIL AND CONSULTATION WITH THE CITY ATTORNEY, AND NO PUBLIC REVIEW BEFORE ANY CITY COUNCIL DELIBERATION REGARDING THE SUBJECT CATEGORICAL EXEMPTION. IT IS ACCEPTABLE UNDER C.E.Q.A. AND IS COMMON PRACTICE FOR EXEMPTION DETERMINATIONS TO BE MADE AT THE STAFF LEVEL. STAFF REVIEWED THE PROJECT IN ACCORDANCE WITH THE REGULATIONS AND TIMEFRAMES SET FORTH IN

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AB1633 WHICH INVOKE THE LAW TO ENSURE THE CITY DETERMINES A PROJECT TO BE EXEMPT FROM C.E.Q.A. WHEN ELIGIBLE. THE CITY COUNCIL MET IN CLOSED SESSION ON SEPTEMBER 24, 2024, TO DISCUSS POTENTIAL LITIGATION RELATED TO THE PROJECT UNDER C.E.Q.A., AS PUBLICLY NOTICED. NO PUBLIC --

>> MAYOR ISHII: SORRY, ONE SECOND. FOLKS IN THE AUDIENCE, KEEP YOUR COMMENTS TO YOURSELF. AND MAKE SURE YOUR PHONES ARE ON AND PUT ON SILENT.

>> NO PUBLIC DISCUSSION REGARDING THE C.E.Q.A. DETERMINATION IS REQUIRED BY AB1633 OR THE HOUSING ACCOUNTABILITY ACT, AND THE CITY IS NOT OBLIGATED TO DISCLOSE DISCUSSION CONDUCTED IN CLOSED SESSION. IN THE LAST APPEAL POINT THE APPELLANT ASSERTS THE ZAB WAS NOT PROVIDED WITH ALL RELEVANT CITY REPORTS FROM THE ARCHITECTURAL HISTORIANS REGARDING THE U.A. THEATER. THE CITY CONSULTANTS PEER REVIEW OF THE HISTORIC RESOURCE REPORTS AND REVISED PIA WAS PUBLICLY RELEASED WITH THE C.E.Q.A. DETERMINATION LETTER ON OCTOBER 4TH, 2024. STAFF HAD ALREADY MADE THE C.E.Q.A. EXEMPTION DETERMINATION PRIOR TO THE ZAB HEARING ON DECEMBER 12TH, 2024. THE REPORTS STAFF RELIED UPON FOR THE C.E.Q.A. DETERMINATION WERE NOT NECESSARY FOR ZAB'S DELIBERATION ON WHETHER TO APPROVE OR DISAPPROVE THE USE PERMIT AND THUS NOT INCLUDED IN ZAB'S HEARING MATERIALS. ALL TECHNICAL REPORTS WERE PUBLICLY AVAILABLE WELL IN ADVANCE OF THE ZAB

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HEARING. IN CONCLUSION, THE PROJECT IS EXEMPT FROM C.E.Q.A. UNDER THE INFILL EXEMPTION AND PURSUANT TO THE HOUSING ACCOUNTABILITY ACT THE PROJECT IS COMPLIANT WITH ALL APPLICABLE PLANNING STANDARDS, NOR CAN BE REDUCED UNLESS FINDINGS CAN BE MADE. PURSUANT TO STREAMLINING LAWS, TONIGHT'S MEETING IS THE FOURTH OUT OF FIVE MEETINGS THAT THE CITY CAN CONDUCT FOR A DECISION ON THE PROJECT. THAT CONCLUDES STAFF'S PRESENTATION. THANK YOU.

>> MAYOR ISHII: THANK YOU VERY MUCH FOR THE PRESENTATION. WE ARE GOING TO MOVE ON TO THE PRESENTATION FROM THE APPELLANT BEFORE MOVING ON TO THE PRESENTATION FROM THE APPLICANT. WILL THE APPELLANT PLEASE COME FORWARD? AND THEN FOR THE APPLICANT IF YOU COULD JUST PREPARE ANYTHING YOU ARE TRYING TO MOVE FORWARD CLOSER UP DO THE FRONT. THANK YOU. PLEASE START WHEN YOU ARE READY, YOU MIGHT WANT TO MOVE THE MIC UP.

>> GOOD EVENING, MAYOR ISHII AND MAYOR AND MEMBERS OF COUNCIL. I REPRESENT THE APPELLANT, SAVE THE U.A. BERKELEY. THIS APPEAL CONCERNS THE CLASS 32 CATEGORICAL EXEMPTION FROM ENVIRONMENTAL REVIEW UNDER C.E.Q.A. THAT STAFF AND THE ZONING ADJUSTMENTS BOARD GRANTED FOR THIS PROJECT. MY PRESENTATION IS ABOUT A PROVISION IN C.E.Q.A. THAT PROHIBITS THE USE OF A CATEGORICAL EXEMPTION WHERE A PROJECT QUOTE, MAY CAUSE A SUBSTANTIAL ADVERSE CHARGE IN THE SIGNIFICANCE OF A HISTORICAL RESOURCE, UNQUOTE.

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THAT SECTION 218, SUBDIVISION E, I'LL USE THAT SECTION NUMBER OFTEN. THERE'S A SIMILAR PROVISION IN THE C.E.Q.A. GUIDELINES WHICH STAFF REFERRED TO AND THOSE ARE REGULATIONS ISSUED BY THE SECRETARY OF RESOURCES, A LOWER LEVEL OF GOVERNMENT THAN THE LEGISLATURE, WHICH C.E.Q.A. WAS DOMINATED BY -- ADOPTED BY. A HISTORICAL RESOURCE EXAMINES IS ONE OF SIX -- EXCEPTION. STAFF AND ZAB DECIDED THE EXCEPTION IN THE C.E.Q.A. GUIDELINES DID NOT APPLY BASED ON REPORTS LEFT COAST. WHICH FOUND ALL PARTS OF THE BUILDING EXCEPT THE FACADE ARE NO LONGER SIGNIFICANT AND DEMOLISHING ALL EXCEPT THE FACADE WOULD NOT CAUSE A CHANGE IN THE HISTORICAL SIGNIFICANCE. STAFF RETAINED A CONSULTANT TO PEER REVIEW THE REPORTS. AND THEY REACHED THREE IMPORTANT CONCLUSIONS. LEFT COAST IMPROPERLY SEGMENTED ANALYSIS OF THE HISTORIC SIGNIFICANCE OF THE BUILDING AND WHETHER THE PROJECT MAY HAVE A SIGNIFICANT IMPACT BETWEEN THE FACADE AND THE REST OF THE BUILDING. AND UNDER GUIDELINES PARTS OF THE BUILDING ARE NOT SEPARATELY LISTED SO YOU CANNOT ANALYZE IMPACTS BY DIVIDING IT UP AND EXCLUDING PARTS FROM THE ANALYSIS AS DONE HERE. THIS GUIDANCE IS THE POLICY OF THE STATE'S HISTORIC PRESERVATION OFFICE. AND THAT OFFICE IS TO EXHIBIT 4 TO MY APRIL 9THLETTER. I ENCOURAGE YOU TO READ EXHIBIT 4. THE DEALS WITH A PROJECT SIMILAR TO THIS, A FACADE WAS RETAINED AND THE REST OF THE BUILDING WAS PROPOSED TO BE DEMOLISHED AND THE STATE OFFICE SAID

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YOU CAN'T GET AROUND C.E.Q.A. BY DOING IT THAT WAY. THE ENTIRE BUILDING HAS TO BE ANALYZED AT ONE. THAT WASN'T DONE HERE. IT CLEARLY VIOLATES STATE POLICY. THE SECOND CONCLUSION, LEFT COAST FAILED TO CONSIDER THE IRREVERSIBLE LOSS OF FUTURE OPPORTUNITY TO USE THE BUILDING AS A THEATER AS A SIGNIFICANT IMPACT. THE BUILDING USE OF A THEATER IS AN IMPORTANT FEATURE THAT IS OF HISTORICAL SIGNIFICANCE. THE THIRD CONCLUSION WHEN YOU CORRECT THESE ERRORS YOU HAVE A PROJECT THAT MAY CAUSE A SUBSTANTIAL ADVERSE CHANGE IN THE SIGNIFICANCE OF THE BUILDING. SO FOR OVER 40 YEARS THE C.E.Q.A. CASE LAW HAS HELD WHERE C.E.Q.A. USES THE WORD, MAY, IN CAUSING SIGNIFICANT AFTERS, THE FAIR ARGUMENT STANDARD APPLIES, TO SECTION 21084E, OF C.E.Q.A. BECAUSE THAT USES THE WORD, "MAY " IN CONNECTION WITH CAUSING SIGNIFICANT AFFECTS. THE STANDARD IS ENVIRONMENT FRIENDLY BECAUSE IT REQUIRES RESOLVING DISAGREEMENTS IN FAVOR OF CONDUCTING ENVIRONMENTAL REVIEW UNDER C.E.Q.A. AND APPLYING THE STANDARD IS STRAIGHTFORWARD BECAUSE REN RONES ARE THIS REQUIRES RESOLVING THE DISAGREEMENT IN FAVOR OF NOT APPLYING THE EXEMPTION AND CONDUCTING ENVIRONMENTAL REVIEW UNDER C.E.Q.A. THE APPLICANT COUNTRY TENDS AB1633 CHANGED THE LEGAL STANDARD FOR ALL -- CONTENDS. TO A STANDARD THAT FAVORS DEVELOP, THE SO-CALLED SUBSTANTIAL EVIDENCE STANDARD. THE NEW PROVISION ONLY REFERS TO THE EXEMPTION EXCEPTIONS IS IN THE C.E.Q.A. GUIDELINES, IT DOES

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NOT PURPORT TO ADDRESS SECTION 21084E OF C.E.Q.A. SO THE APPLICANT NOW HAS TO ENGAGING IN ANOTHER ARGUMENT I ADOPTING AB1633, THE LEGISLATURE ENGAGED IN IMPLIED REPEAL. THE COURTS WILL AVOID FINDING REPEAL, USING ESTABLISHED RULES THAT GOVERN STATUTES. HERE THE STATUTES ARE HARMONIZED, THE SECTION IS MORE SPECIFIC THAN THE NEW PROVISION IN AB1633 AND THE ESTABLISHED RULE GOVERNING THE INTERPRETATION IS AT THE MORE SPECIFIC STATUTE WILL PREVAIL. SECTION 21804E PRECLUDES CATEGORICAL EXEMPTION.

>> MAYOR ISHII: YOU CAN FINISH YOUR SENTENCE.

>> I HAVE ONE MORE SENTENCE REALLY. I WANT TO CLOSE BY NOTING THAT WHAT IS MISSING BY NOT PREPARING AN EIR, IS THE IN-DEPTH ANALYSIS OF FEASIBLE MITIGATIONS THAT MIGHT REDUCE IMPACTS MORE THAN THIS ONE WOULD.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> MAYOR ISHII: OKAY. SO THE APPLICANT NOW WILL GIVE A PRESENTATION FOR 5 MINUTES. PLUS ONE SENTENCE SINCE I ALLOWED ONE SENTENCE EXTRA. IF YOU WANT TO WAIT UNTIL THEY ARE SET UP, THAT'S FINE TOO. READY? ALL RIGHT.

>> GOOD EVENING, MAYOR ISHII AND MAYOR AND MEMBERS OF COUNCIL. MY NAME IS ROBIN, A PARTNER AT HANSON BRIDGES AND -- HERE ON BEHALF OF THE PROJECT SPONSOR AND ISAIAH WAS THE APPLICANT AND PROJECT ARCHITECT. IN RESPONDING TO THE APPEAL, FIRST I WANT TO

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EMPHASIS THAT I HAVE RESPONDED TO SOME OF THE KEY ISSUES IN A LETTER TO THE CITY COUNCIL THAT I SUBMITTED TO THE CITY. SECOND, I WANT TO RECOGNIZE THE CHALLENGE THAT THE CITY COUNCIL AND THE BERKELEY COMMUNITY PRETTY MUCH EVERYBODY HAS IN KEEPING UP WITH THE EVOLVING STATE HOUSING LAWS IN CALIFORNIA. AB1633 IS A BILL SPONSORED BY THE BAY AREA COUNCIL IN 2023 AND TOOK AFFECT ON JANUARY 1, 2024, BY AMENDING THE ACT TO CHANGE THE WAY C.E.Q.A. EXEMPTIONS ARE PROCESSED FOR INFILL PROJECTS SUCH AS THIS ONE. AS A HOUSING COMMITTEE CHAIR IN THE BAY AREA COUNCIL, I HAD DIRECT INSIGHT INTO THE FRAMEWORK AND LEGISLATIVE INTENT. I CAN SAY WITH CONFIDENCE THIS PROJECT MEETS THE ELIGIBILITY REQUIREMENTS. THE APPLICANT'S LEGAL LETTERER AND TESTIMONY GOES INTO DETAIL ABOUT THE STANDARD OF REVIEW UNDER C.E.Q.A. MY LETTER RESPONDS TO THOSE CLAIMS ALSO IN GREAT DETAIL. TO SUMMARIZE, IF THE CITY WERE TO USE THE FAIR ARGUMENT STANDARD IN REVIEWING THE PROJECT UNDER C.E.Q.A. THAT COULD RESULT IN A HAA VIOLATION IF IT PREVENTED THE CITY FROM FOLLOWING THE EXPRESS STATUTORY MANDATES. THERE ARE CORE PROVISIONS WORTH MENTIONING HERE. NOW, FOR THESE PROJECTS THE HAA PUTS THE BURDEN ON THE PROJECT APPLICANT TO PROVE THAT AN EXEMPTION APPLIES. IN THE BURDEN IS ON THE APPLICANT TO PROVE THERE ARE NO EXCEPTIONS INCLUDING THE HISTORICAL RESOURCES EXCEPTION THAT WOULD DISQUALIFY THE USE OF EXEMPTION. AFTER THE APPLICANT PROVIDES

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THE INFORMATION, THE CITY HAS 90 DAYS OR UP TO 180 DAYS IF MORE TIME IS NEEDED TO REVIEW THE NOTICE AND CONFIRM IT IS SUPPORTED BY SUBSTANTIAL EVIDENCE. THIRD, A CITY IS LIABLE UNDER THE HAA IF SUBSTANTIAL EVIDENCE PROVIDED BY THE APPLICANT IS PROVIDED BY THE APPLICANT BUT THE LOCAL AGENCY DOES NOT DETERMINE THE PROJECT IS EXEMPT. THIS FRAMEWORK IS IMPORTANT, IT SHIFTS HOW THE BURDEN OF PROOF OPERATES FOR THE SMALL SUBSET OF PROJECTS. THE APPLICANT FOLLOWED STATUTE AND AS REQUIRED SUBMITTED AB1633 NOTICE IN MARCH OF 2024. THE NOTICE WAS BASED IN PART OF FINDINGS FROM LEFT COAST ARCHITECTURAL HISTORY, THAT PREPARED THE EVALUATION AND PROJECT IMPACT ANALYSIS. THE HISTORIAN SPENT MORE THAN 6 MONTHS GATHERING RECORDS FROM EVERY AVAILABLE ARCHIVE, COMPILING MATERIALS, COMPARING THEM TO SURVEYS, ADDRESSING INCONSISTENCIES AND ULTIMATELY PREPARING A DETAILED HRE FINALIZED IN DECEMBER 2023. THE HISTORIAN FOR THIS PROCESS FOLLOWED THE PROCESS REQUIRED BY C.E.Q.A. AND ANALYZING POTENTIAL IMPACTS TO HISTORIC RESOURCES, INCLUDES ANALYSIS OF WHETHER DEMOLITION WOULD IMPACT THE FEATURES OF THE PROJECT, OR BUILDING THAT CONVEY ITS HISTORICAL SIGNIFICANCE. THE STAFF MADE THE CORRECT DECISION WHEN THEY FOUND THE PROJECT EXEMPT UNDER THE INFILL EXEMPTION AND THE HISTORICAL RESOURCES EXEMPTION DOES NOT APPLY. THANK YOU FOR CONSIDERING THE POINTS AND THE PLANNING COMMISSION FOR THE NEW REQUIREMENTS IMPLEMENTED BY AB1633.

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[APPLAUSE]

>> THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> MY NAME IS PATRICK KENNEDY. I HAVE GREAT SYMPATHY WITH THE MOVIE LOVERS REPRESENTED HERE TONIGHT. I TOO OWN --

>> MAYOR ISHII: EXCUSE ME.

>> AND IN FACT IN FEBRUARY OF THIS YEAR, I ATTENDED THE DOG FILM FESTIVAL IN SAN FRANCISCO. IT'S REAL. THERE IS A -- IT WAS THE NINTH ANNUAL ONE. THERE ARE THREE POINTS I WOULD LIKE TO MAKE, FIRST OFF WHEN WE TOOK THIS PROJECT OVER IN FEBRUARY OF 2023, WE OFFERED THE SPACE TO U.A. THEATERS FOR $1 A YEAR FOR AS LONG AS IT TOOK US TO GET THE PROJECT APPROVED, WHICH WOULD HAVE BEEN NOW IT'S ENTERING ITS THIRD YEAR. THEY DECLINED. THEY STAYED FOR ONE MONTHS AND CLOSED IT AND SAID THE BUSINESS WAS INADEQUATE IN BERKELEY EVEN THOUGH THEY HAD SEVEN SCREENS IN THE THEATER. THEY CLOSED HERE AND THEY CLOSED ELSEWHERE. I THINK THEY ARE OPEN IN EMERYVILLE. A SECOND POINT, THE FACEBOOK GROUP HAS INCREDIBLE REACH. THEY ARE FROM CORK AND SAUDI ARABIA, WE HAVE THE SUPPORT OF THE LOCAL PRESERVATION, BAHA, AND THE PRESIDENT LEILA TESTIFIED IN SUPPORT OF THIS PROJECT. [BEEP]

>> MAYOR ISHII: YOU CAN FINISH YOUR SENTENCE AND ONE MORE.

>> LPC. ONE MORE SENTENCE. FINALLY, WE ARE DOING EVERYTHING THAT THE LPC ASKED US TO DO IN THIS PROJECT, WHICH INCLUDES RESTORING

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THE FACADE, RESTORING THE LOBBY, AND INCORPORATING THE SIGNIFICANT ARCHITECTURAL DETAILS THAT REMAIN IN THE BUILDING IN THE NEW STRUCTURE. THANK YOU VERY MUCH.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> MAYOR ISHII: OKAY. SO WE ARE NOW OPENING FOR PUBLIC COMMENT. SO I WILL ASK IF THE APPLICANT CAN MAYBE MOVE THESE POSTERS SO THAT FOLKS CAN SPEAK. IF YOU ARE INTERESTED IN GIVING PUBLIC COMMENTS, I'M GOING TO ASK THAT YOU GET STANDING UP ON THE WALL TO STAND IN LINE. TAKE YOUR TIME. WALK SLOWLY. I DON'T WANT ANYONE TO TRIP. AND SO FOR THOSE OF YOU WHO HAVE NOT BEEN TO COUNCIL RECENTLY, I'M A HUGE STICKLER FOR TIMING. SO YOU HAVE 1 MINUTE TO GIVE YOU PUBLIC COMMENTS. AND THEN YOU CAN FINISH YOU SENTENCE IF THE BUZZER BEEPS RIGHT AS YOU ARE ENDING AND THEN I'M GOING TO ASK YOU TO STOP. THANK YOU SO MUCH. I APPRECIATE IT. I KNOW WE HAVE A LOT OF PUBLIC COMMENT. WE WANT TO HEAR FROM EVERYONE AND THANK YOU FOR COMING HERE TO SHARE YOUR OPINIONS WITH US. I'M GOING TO START WITH THE FIRST PUBLIC COMMENTER AND THE OTHER THING, I'M GOING TO ASK FOLKS PLEASE NOT SPEAK BECAUSE IT CAN BE VERY DISRUPTIVE. WE WANT TO MAKE SURE WE CAN HEAR EVERYONE. THANK YOU. GO AHEAD.

>> THANK YOU, EVERYONE. I'M KARA BINS, SPEAKING. SPEAKING IN STRONG SUPPORT OF THE PROPOSED PROJECT AT 2274 SHATTUCK. IT ALIGNS WITH THE COMMITMENT TO BUILDING MORE HOUSING DOWNTOWN AND

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REFLECTS OUR BROAD, VISION FOR A SUSTAINABLE AND INCLUSIVE CITY. PROJECTS ARE ESSENTIAL TO MEETING OUR GOALS UNDER THE DOWNTOWNS AREA PLAN, AND OUR REGIONAL HOUSING NEEDS ALLOCATION. LAST MONTH I PERSONALLY TOURED THE UNITED ARTIST THEATER SITE. WHAT I SAW CONFIRMED WHAT PRESERVATION EXPERTS NOTED, VERY LITTLE OF THE HISTORIC THEATER REMAINS. WHAT WAS ONCE BEAUTIFUL IS MOSTLY CONCRETE AND DECAY. IMPORTANTLY, THIS PROJECT DOESN'T COME AT THE COST OF OUR CITY'S ARTISTIC SPIRIT, WHICH I DEARLY LOVE. THE REDEVELOPMENT OF THE CALIFORNIA THEATER PROPOSES TO INCLUDE A SPACE PRESERVING A VITAL VENUE FOR ARTISTIC EXPRESSION DOWNTOWN. THANK YOU. [BEEP]

>> MAYOR ISHII: OKAY.

>> CONNER MITCHELL. I'M RISING IN OPPOSITION OF THE PROJECT. I AM A FILM DIRECTOR LIVING IN SAN FRANCISCO, BUT I CONSIDER BERKELEY ONE OF THE GREAT AMERICAN CITIES. I'VE BEEN HELPING PRODUCE AND DIRECT A DOCUMENTARY ON OLD THEATERS IN THE BAY AREA. SINCE COVID PANDEMIC, MORE THAN A THOUSAND MOVIE THEATER SCREENS HAVE GONE DARK GAIN THE ACROSS. AND ALL THESE IN THE DOWNTOWN STRETCH OF BERKELEY HAVE CLOSED INCLUDING THE SHATTUCK AND CALIFORNIA. I'M NOT SURE THE SPECIFICS ON WHAT THE SOLUTION IS GOING TO BE FOR THIS PROJECT, HOWEVER, I DO KNOW THAT OVER THE LAST FEW YEARS, THEATERS HAVE BECOME MUCH MORE IMPORTANT AND RARE. IT IS FAR MORE IMPORTANT NOW THAT BUILDINGS LIKE THE U.A.

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BERKELEY ARE NOT ONLY PRESERVED FOR THE CONNECTION TO OUR PAST AND ALSO TO HELP FORWARD THE GENERATIONS OF THE FUTURE. THANK YOU. [APPLAUSE]

>> MAYOR ISHII: THANK YOU. NEXT PERSON CAN COME UP.

>> GOOD EVENING, COUNCIL. MY NAME IS JAKE PRICE. I'M SPEAKING IN SUPPORT OF THE PROJECT AND AGAINST THE APPEAL. I GREW UP IN BERKELEY, GOING TO THE U.A. THEATER. IT'S A LOVELY THEATER. IT'S NO LONGER A VIABLE BUSINESS AND WE NEED HOUSING DOWNTOWN. WHEN I WAS AT BERKELEY HIGH OVER A DECADE AGO NOW, ALL THE BUSINESSES ON SHATTUCK WERE VIBRANT AND THEN SERVING HIGH SCHOOLERS AND COLLEGE STUDENTS AND NOW I SEE VACANCIES THROUGHOUT THE STREET. WE NEED MORE FOOT TRAFFIC, MORE DENSE URBAN INFILL DEVELOPMENT. AND THIS PROJECT EXEMPLIFIES THAT AND I ASK WE MOVE IT FORWARD TODAY. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> I GET IT. I UNDERSTAND WHERE THE PASSION HERE COMES FROM. WHO ISN'T FOR ARTISTRY AND UNITY? WHO WOULDN'T LOVE A ONCE GLORIOUS ART DECO MOVIE THEATER RESTORED AS IF OUT OF THE STATE HOLLYWOOD THAT BIRTHED ITS CREATION. STICKING IT TO THE BIG BAD DEVELOPERS AND SHOWING THE COMMON FOLK CAN WIN. IT APPEARS IT LACKS GROUNDING IN THE REALITY OF CONSTRUCTION COSTS OR WHAT CREDITABLE BUSINESS PLAN WOULD JUSTIFY SUCH AN INVESTMENT. WHAT WILL IT BE CITY COUNCIL? IS THIS A POPULARITY CONTEST? HAVE YOU

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BEEN ELECTED TO MAKE THOUGHTFUL AND INFORMED DECISIONS ABOUT OUR CITY'S FUTURE. SAVING THE U.A. WOULD PROVIDE A DAMAGED AND FADED STAR, AN EMPTY SHELL WITH ONLY AN IMPLAUSIBLE SCREEN PLAY AND NO PRODUCER TO MAKE IT, THAN TO MAKE IT ANYTHING MORE THAN A GOOD STORY. [APPLAUSE]

>> MAYOR ISHII: THANK YOU.

>> HI THERE. GOOD EVENING, MY NAME IS ALLEN. I'M IN SUPPORT OF THE PROJECT. THE RULES HAVE BEEN FOLLOWED. AND IT'S IMPORTANT WE REDEVELOPMENT BUILDINGS LIKE THIS WITH BETTER USE. I THINK IT'S AD ADMIRABLE IT IS MAINTAINED BUT WE NEED HOUSING AND THIS IS A GOOD PROJECT. I HOPE YOU'LL SUPPORT IT. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> GOOD AFTERNOON. MY NAME IS SHAWN. I'M SPEAKING IN SUPPORT OF THE PROJECT. THE HOUSING AFFORDABILITY CRISIS THAT CALIFORNIA AND THE REST OF AMERICA FACES IS PROBABLY MY GENERATION'S GREATEST CONFLICT. I THINK WE NEED TO DO EVERYTHING IN OUR POWER TO FIGHT AGAINST THIS AND BUILD WHENEVER WE CAN. AND IT'S PROBABLY MY GREATEST RESERVATION ABOUT STAYING WITHIN THE STATE, HAVING AFFORDABLE HOUSING. WE HAVE 45 UNITS UP FOR THE TAKING. I WALKED INSIDE OF THE MOVIE THEATER DOING THE TOUR. I WOULDN'T PAY TO WATCH A MOVIE IN THERE. THAT IS RUN DOWN AND NEEDS MILLIONS OF DOLLARS IN REMODELING COSTS. AND THERE IS NO PLAN OUTLINED TO SAY HOW IT'S GOING TO BE DONE, WHO IS GOING TO PAY

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FOR IT. THE BUILDERS ARE RIGHT HERE RIGHT NOW READY TO PUT UP AN APARTMENT COMPLEX, WE SHOULD LET THEM. LET'S BUILD, BERKELEY. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> GOOD EVENING. MY NAME IS MONI LAW. I RISE TO SPEAK IN FAVOR OF HOUSING DOWNTOWN, ECONOMIC VITALITY, AND THIS HISTORIC LANDMARK UNITED ART'S THEATER AS A FILM MAKER MOM, AN ACTOR MOM, I ENJOYED MOVIES AT THIS THEATER. I'M CONVINCED MOVIE THEATERS AREN'T DEAD. SIXTY MILLION DOLLARS MADE THIS LAST WEEK AT GRAND LAKE THEATER. -- C.E.Q.A. IS NOT NULLIFIED BE AB1633, THEY OPERATED CONTINUOUSLY FOR 93 YEARS. A FACADE DOES NOT A LANDMARK MAKE IT'S THE BUILDING ITSELF. WE CAN DO BOTH HOUSING AND A THEATER. I SAY IN THE FAMOUS STAR WARS QUOTE, MAY THE FORCE BE WITH YOU, COUNCIL, TO MAKE THE RIGHT DECISION IN FAVOR OF RETAINING THIS CULTURAL GEM. THANK YOU.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> HI, MY NAME IS TERESE POLETY, THE PRESERVATION DIRECTOR OF THE ART DECO SOCIETY OF CALIFORNIA. AND WHICH IS BASED IN BERKELEY, AND I'M ALSO A BERKELEY RESIDENT. I WOULD LIKE TO URGE THE CITY COUNCIL TO PLEASE CONSIDER THAT THIS BUILDING IS NOT -- DOES NOT QUALIFY FOR AN EXEMPTION TO C.E.Q.A. IT IS A MAJOR HISTORIC RESOURCE, IT IS AN ART DECO TREASURE. AND BERKELEY IS GOING TO BE TEARING DOWN THE EQUIVALENT OF THE PARAMOUNT THEATER

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IN OAKLAND SHOULD THE DEMOLITION HAPPEN. PLEASE RECONSIDER WHAT COULD HAPPEN IF THIS TURNS INTO EITHER A HOLE IN THE GROUND WITH NOTHING OR IF THIS THEATER IS GONE WITH JUST A FACADE. WE HAVE A MAJOR, MAJOR TREASURE HERE IN BERKELEY THAT SHOULD NOT BE DEMOLISHED. BECAUSE ONCE IT'S GONE IT'S GONE FOREVER. THANK YOU VERY MUCH FOR YOUR TIME. [APPLAUSE]

>> MAYOR ISHII: THANK YOU.

>> HI, MY NAME IS HEATHER RIPLEY. I WOULD LIKE TO -- I WOULD LIKE TO CEDE MY TIME TO LAURA LINDEN.

>> MAYOR ISHII: SURE. OH, OKAY. YOU HAVE TWO MINUTES. YOU MIGHT WANT TO MOVIE THE MIC DOWN.

>> I'M NOT LAURA. I AM ALSO CEDING MY TIME TO LAURA.

>> MAYOR ISHII: WHY DON'T YOU ALL COME UP SINCE YOU ARE CEDING TIME TO HER. IT WOULD BE EASIER SO I'M CLEAR WHO IS CEDING TIME. NO, NO. OKAY, SO THE THREE OF YOU ARE CEDING TIME. WHO IS? ONE, TWO, THREE. OKAY, GREAT. COME ON UP, PLEASE. YOU CAN SEPARATE IT HOWEVER YOU WOULD LIKE.

>> WILL IT START AND THEN I CAN LOOK, IS THAT WHAT THIS -- YEAH.

>> MAYOR ISHII: THERE IS A CLOCK HERE AND ONE HERE TOO THAT YOU CAN CHECK. OKAY. GO AHEAD.

>> OKAY.

>> MAYOR ISHII: WHY DON'T THE LINE, WHY DON'T YOU MOVE UP A BIT TOO.

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>> HI, I'M LAURA LINDEN, COLEADER OF THE GROUP U.A. THEATER. LOOK AT THE PEOPLE HERE, COME ON. THOUSANDS, HUNDREDS IF NOT THOUSANDS HAVE WRITTEN YOU LETTERS OVER THE PAST YEAR. YOU KNOW A LOT OF PEOPLE IN BERKELEY, THE WIDER EAST BAY, THIS IS A LEGITIMATE ISSUE WITH A VERY LEGITIMATE LEGAL, AND ALSO A WIDER POLICY ARGUMENT THAT'S WHY WE'RE HERE TO TALK TO YOU ABOUT IT. THAT IS WHY WE NEED TO MEET WITH YOU. BECAUSE WE FEEL LIKE SOME BAD FAITH THINGS HAVE BEEN SAID BY THE DEVELOPER ABOUT US AND OUR ARGUMENTS. SO ANYWAY --

>> MAYOR ISHII: YOU MIGHT WANT TO SPEAK INTO THE MIC.

>> THIS IS HELD UP HERE BECAUSE YOU KNOW, TO SAY THERE'S NOTHING HISTORIC IN THE INTERIOR OTHER THAN THE LOBBY OR FACADE IS RIDICULOUS, EVEN AS A MULTICOMPLEX, IT'S CHOCKED FULL OF DECOR ALL THROUGHOUT, IN THE AUDITORIUMS, THE MEZZANINE, THE GRAND STAIRCASE ON THE LEVEL OF RADIO CITY MUSIC HALL. THOSE ARE THE ANGLES BECAUSE THE -- BEHIND THE PARTITIONS, THERE IS DAMAGE BUT IT IS INCREDIBLE THIS AUDITORIUM EXISTS. IT WAS PRESERVED IN THE '70S FOR THE ABILITY TO POSSIBLY BRING IT BACK. SO THIS THEATER HAS A LOT OF OPTIONS. SO PLEASE LOOK AT ALL OF THE PHOTOS AND DO NOT DISMISS WHAT IS IN THE INTERIOR OF THE THEATER. AS OUR ATTORNEY TALKED ABOUT, THIS THEATER THE NUT OF IT IS ON THE STATE HISTORIC REGISTRY, WHICH IS A LISTING THAT PROTECTS THE ENTIRE BUILDING. SO VERY QUICKLY, I WANTED TO JUST CALL OUT WHAT

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HAS BEEN UNFORTUNATELY YOU KNOW AND AGAIN, WE RESPECT THE CITY COUNCIL AND WE REALLY ARE COUNTING ON YOU TO GIVE US A FAIR HEARING AND TO BE INDEPENDENT AND PROBLEM SOLVERS. WE'VE HAD A LOT OF TROUBLE GETTING INFORMATION. THIS C.E.Q.A. EXEMPTION WAS SO PIVOTAL TO THE PROJECT'S APPROVAL WE FEARED THE DELIBERATION WOULD BE DONE IN SECRET AND GRANTED AND OVER. AND THAT'S PRETTY MUCH WHAT HAPPENED. IN FEBRUARY OF LAST YEAR, YOU KNOW, C.E.Q.A. WAS OUTLINED IN JANUARY AND THEN ACTUALLY IN MARCH I SPOKE WITH SHARON GONG FOR 20 MINUTES, TOOK NOTES. SHE DID NOT MENTION THAT THE DEVELOPER HAD ACTUALLY TWO WEEKS BEFORE IN A 300 PAGE DOCUMENT DEMANDED A FULL EXEMPTION TO C.E.Q.A. I ASKED HER ABOUT POSSIBLE EXEMPTIONS, SHE SAID NOTHING LIKE THAT HAPPENED. WE ONLY FOUND OUT IN MAY THAT HAD HAPPENED. AND THEN WE BEGAN SENDING LETTERS TO YOU GUYS AND SENDING LETTERS TO THE WHOLE CITY. SEEK PEER REVIEW, GET OTHER INPUT, PLEASE. WE HEARD NOTHING. IT WAS PRETTY MUCH JUST WE HEARD NOTHING ALL SPRING, ALL SUMMER. WHAT WE DID HEAR THE HOUSING PROJECT PROPOSAL WAS ON HOLD, ON HOLDS, ON HOLD. AND THEN ONLY IN MAY DID WE FIND OUT THAT THERE WAS A DEMAND. AND THEN NOTHING, NOTHING, NOTHING, AND THEN ON OCTOBER 4TH, THEN SUDDENLY YOU KNOW THE EXEMPTION IS GRANTED AND THEN OH, WHAT DO YOU KNOW THAT SAME DAY FINALLY THOSE DOCUMENTS ARE POPPED INTO THAT LITTLE PORTAL MOST PEOPLE DON'T KNOW HOW TO GET TO BUT I DID EVENTUALLY FIND IT. OKAY, YOU

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KNOW, ONE OF BEEN TRYING TO GET INFORMATION TO THE PUBLIC I WE DIDN'T GET IT [BEEP]

>> MAYOR ISHII: SORRY, YOUR TIME IS UP.

>> WAS THAT 4 MINUTES?

>> MAYOR ISHII: YES, THANK YOU FOR YOUR COMMENTS.

>> ALL RIGHT. [APPLAUSE]

>> MAYOR ISHII: COULD YOU ALLOW THE NEXT SPEAKER TO COME UP PLEASE? THANK YOU.

>> I'M SORRY. SOMEONE TRIED TO MURDER ME AND NOBODY CARES. AT CEDAR ROSE PARK, A MAN TRIED TO STRANGLE ME TO DEATH. I'M CURRENTLY HOMELESS. WHY? I'M HOMELESS BECAUSE

>> MAYOR ISHII: THIS IS PUBLIC COMMENT ON -- CITY MANAGER CAN I REFER THIS TO YOU PLEASE. WE'RE ACTUALLY HAVING A PUBLIC HEARING ON A SPECIFIC ISSUE.

>> OKAY, JUST SOS BECAUSE THERE IS A MURDER AND HE WANTS TO RING YOUR NECK.

>> MAYOR ISHII: I HEAR YOU. I WILL REFER YOU TO THE CITY MANAGER AND HAVE SOMEONE TAKE THIS WOMAN'S REPORT. THANK YOU.

>> SHALL I START?

>> MAYOR ISHII: YES.

>> THANK YOU. MY NAME IS TOBA HALPERN. I KNEW I HAD TO DO MY PART TO PRESERVE THIS THEATER. BORN AND RAISED IN BERKELEY, I MANY MEMORIES OF MOVIES THERE. AND REPRESENT MY HOMIES FROM

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BERKELEY WHO WENT WITH THEIR FRIENDS AND FAMILIES TO SEE THEIR FIRST FILMS AT THE THEATER. THEY WANT THEIR GRANDCHILDREN TO HAVE THE SAME OPPORTUNITY. THERE ARE GROUPS OF LOCAL ACTORS AND ARTISTS WITHOUT A VENUE TO PERFORM. SO A STAGE AND AN AUDITORIUM WOULD BE OF GREAT BENEFIT. DOWNTOWN BERKELEY WAS THE HUB AND THIS THEATER WAS THE PLACE TO GO. THE BEAUTY OF THE THEATER IS THE LOCATION AND ACCESSIBILITY BY B.A.R.T., WALKING AND BY BUS. U.C. BERKELEY STUDENTS FROM ALL OVER THE WORLD BECOME ACQUAINTING WITH AMERICAN CULTURE, FILMS INSTRUCT US ABOUT THE PAST, PRESENT AND FUTURE. LET US NOT DENY THE GENERAL -- [BEEP]

>> MAYOR ISHII: SORRY. THAT'S YOUR, THE END OF YOUR TIME.

>> OKAY. SORRY.

>> MAYOR ISHII: I'M SORRY, UNLESS YOU COULD FIND SOMEONE TO GIVE YOU A MINUTE IF YOU WOULD LIKE.

>> OKAY. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> HELLO.

>> MAYOR ISHII: FEEL FREE TO MOVE THE MIC.

>> SO I DON'T PULL OUT MY BACK. I AM THE COPRODUCER -- AND A LOCAL FILM EDITOR OF DOCUMENTARIES, AND I THINK IT'S NOTABLE THAT PATRICK KENNEDY HAD TO GO TO SAN FRANCISCO TO SEE THE DOG FILM FESTIVAL SINCE THERE ARE NO LONGER THEATERS IN DOWNTOWN BERKELEY, INCLUDING THE FINE ARTS CINEMA WHICH WAS IN A SPACE

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WHERE A PATRICK KENNEDY BUILDING EXISTS. THE FINE ARTS CINEMA NO LONGER EXISTS. THE FACT THERE IS A GAPING HOLE AND THE FACT THERE ARE EMPTY STORE FRONTS BECAUSE THE BUSINESSES WERE MOVED OUT TO MAKE WAY FOR A HOUSING DEVELOPMENT ON HOLD AND IS NOT HAPPENING UP AND DOWN CENTER. HAVE BEEN MOVED OUT I WOULD LIKE TO GIVE THE -- GROUND WELL BEHIND ME TO OPPOSE THE PROJECT AT THE UNITED ARTIST. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> MY NAME IS JEFF. I WOULD LIKE TO YIELD MY MINUTE TO DAVID.

>> MAYOR ISHII: GO AHEAD.

>> I WAS A KID I USED TO SEE MOVIES AT THE U.A. IT NEVER OCCURRED TO ME THIS BUILDING WAS REMARKABLE IN ANYWAY. IT HAD LONG BEEN CARVED UP INTO A MULTIPLEX AND NO LONGER MADE ECONOMIC SENSE TO HAVE THAT STYLE OF MOVIE PALACE IN DOWNTOWN BERKELEY. 200 PLUS APARTMENTS SEEMS LIKE A BETTER USE OF THE SPACE THAN A MOVIE THEATER IN AN AREA ERA WHEN NO ONE GOES TO MOVIES. I'M NOT SAYING THE APPEAL IS BAD FAITH BUT IT'S WORTH NOTING NOBODY WAS INTERESTED IN LANDMARKING THE PROPERTY 50 OR 40 YEARS AGO OR 30 YEARS AGO OR 20 YEARS AGO, OR 10 YEARS AGO OR 5 YEARS AGO, OR 3 YEARS AGO, I THINK YOU SEE MY POINT. NOW SOMEBODY WANTS TO BUILD APARTMENTS HERE AND SUDDENLY EVERYBODY WANT TO LANDMARK THIS MAGNIFICENT EXAMPLE THEY HADN'T NOTICED FOR 50 YEARS. IT MAKES ME A LITTLE BIT CYNICAL. IF IT SEEMS LIKE I'LL BEING MEAN, THAT

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IS NOT MY INTENT. BUT I WOULD LIKE US TO BE CLEAR THAT THIS IS AN ISSUE OF VALUES. I AM ASKING THE COUNCIL AND THE CITY TO VALUE OUR CURRENT AND FUTURE GENERATIONS U.C. STUDENTS ARE LIVING IN CARS BECAUSE OF OUR HOUSING CRISIS. RATHER THAN INDULGE THIS NOSTALGIA AND SENT MENTALITY, PLACES FOR PEOPLE TO LIVE ARE FAR MORE IMPORTANT THAN THE BERKELEY THAT EXISTS TODAY THAN PRESERVING A MID-20THCENTURY MOVIE HOUSE. IT IS TIME TO PRIORITIZE THE FUTURE OF BERKELEY, RATHER THAN ITS PAST. THANK YOU. [APPLAUSE]

>> MAYOR ISHII: THANK YOU.

>> THESE TWO PEOPLE ARE GOING TO CEDE THEIR TIME TO ME.

>> MAYOR ISHII: WHICH TWO PEOPLE? ARE THOSE -- CAN YOU JUST --

>> [OFF MIC]

>> MAYOR ISHII: CAN YOU -- CAN YOU JUST WAVE YOUR HAND? THANK YOU, OKAY. I'M GOING TO ASK YOU SIT DOWN UNLESS YOU HAVE SOMETHING TO HOLD UP.

>> I THINK GARY OVER THERE.

>> MAYOR ISHII: GARY, ARE YOU ALSO GIVING YOUR MINUTE?

>> YES.

>> MAYOR ISHII: CAN YOU STEP OUT OF THE LINE PLEASE SO WE'RE CLEAR. THANK YOU.

>> I JUST WANT TO SAY QUICKLY BEFORE I SPEAK THE REASON IT --

>> MAYOR ISHII: THIS WILL BE PART OF THE OF YOUR TIME.

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>> YES, I UNDERSTAND. THE REASON IT WASN'T LANDMARKED 50 YEARS AGO, THEY COULDN'T PUT IN THE MULTIPLEXOR ALTER IT. AS THE OWNER OF A MOVIE THEATER, LANDMARKING IT WOULDN'T SERVE PURPOSES AT THE TIME. SO DEAR MAYOR AND CITY COUNCIL, THIS DOCUMENT WHICH IS A PART OF THE APPEAL REFERENCED ABOVE WILL FOCUS ON THE FACT THAT THE HOUSING DEVELOPMENT PROPOSED FOR 2274 SHATTUCK AVENUE IS OUT OF COMPLIANCE WITH THE CITY'S DOWNTOWN AREA PLAN. DAP. AND THUS THE GENERAL PLAN AND IS THEREFORE NOT ELIGIBLE FOR THE CLASS 32 EXEMPTION THAT STAFF GRANTED TO THE PROJECT. THE EXEMPTION SHOULD BE REVERSED AND THE PROPOSAL SENT BACK TO STAFF TO UNDERGO THE C.E.Q.A. REVIEW PROCESS THAT WAS OUTLINED BY THE CITY IN JANUARY 2024. THE CITY'S VAGUE CLAIM THAT THERE ARE NOW COMPETING INTERESTS AFFECTING DOWNTOWN PLANNING IN NO WAY MAKES LEGAL -- I'M SORRY, MAKING LEGAL LETTING A DEVELOPER DEMOLISH THE MASSIVE AND HISTORIC U.A. STRUCTURE, WHICH IS NOW A LOCAL LANDS MARK ON THE CALIFORNIA REGISTER OF HISTORICAL RESOURCES AND INELIGIBLE. ACCORDING TO CALIFORNIA CODE REGULATIONS TITLE 141-5332, AN INFILL DEVELOPMENT PROJECT MUST BE CONSISTENT WITH THE APPLICABLE GENERAL PLAN DESIGNATION AND ALL APPLICABLE GENERAL PLAN POLICIES AS WELL AS WITH THE APPLICABLE ZONING DESIGNATION AND REGULATIONS. BUT THE PROJECT BECAUSE IT CALLS FOR DESTROYING THE PLACIAL STRUCTURE, TO RETAIN PART OF THE FACADE AND LOBBY, IT IS OUR UNDERSTANDING THE DEVELOPER IS NOT

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LEGALLY BOUND TO RETAIN THE LOBBY, DOES NOT FOLLOW THE DAPS. THE BERKELEY DOWNTOWN AREA PLAN ADOPTED IN 2012 AND PART OF THE GENERAL PLAN WAS A PRODUCT OF UP TO 200 MEETINGS AND MANY YEARS OF WORK. AS A DEMOCRATIC DOCUMENT OF CITIZEN INPUT APPROVED BY TWO-THIRDS OF BERKELEY VOTERS IN 2010 AND MUST BE FOLLOWED. WITH THE STATE PRO HOUSING LAWS ADOPTED SINCE 2017, THE GENERAL PLAN AND DAP ARE IN AFFECT AND GOVERN PLANNING IN THE CITY. ON THE CITY'S DAP WEBPAGE IT STATES TOP GOALS, MAKING DOWNTOWN A RECOGNIZED CENTER FOR CULTURE AND ARTS, BRINGING NEW HOUSING TO DOWNTOWN AND PRESERVING DOWNTOWN'S HISTORIC ASSETS. THE WHOLE DAP DOCUMENT OUTLINES THE POLICIES AND GOALS TO PROMOTE HISTORIC PRESERVATION AND SUPPORT THE DOWNTOWN CINEMAS. AND I WANT TO SAY THIS IS NOT AN ARGUMENT ABOUT WHETHER IT SHOULD BE HOUSING OR THIS OLD THEATER. THIS IS ABOUT FOLLOWING THE LAW, THAT'S WHAT OUR APPEAL IS ABOUT. IT'S NOT ABOUT WHETHER IT'S WORTHY OR NOT. IT IS OUR FEELING THE LAW TO NOT EXEMPT THIS THEATER FROM THE C.E.Q.A. EIR. THANK YOU.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> MAYOR ISHII: NEXT SPEAKER. OKAY. FOLKS, JUST MOVE UP,

>> HELLO, MY NAME IS ANIA FUKES I'LL JUST --

>> MAYOR ISHII: GO AHEAD.

>> I GREW UP WITH THE U.A. THEATER. UP TO UNTIL JUST A FEW YEARS AGO, I BROUGHT FRIENDS FROM OUT OF TOWN. THEY ARE IMPRESSED

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THERE IS NOTHING LIKE THE THEATER IN OTHER CITIES. IT'S A SOURCE OF PRIDE. WHAT MAKES BERKELEY UNIQUE. I JUST FROM AN OUTSIDE POINT OF VIEW, I DON'T UNDERSTAND THERE ARE MANY STORE FRONTS OPEN THAT ARE VACANT AND EMPTY. YES HOUSING, ABSOLUTELY IMPORTANT. BUT I DON'T SEE A CONFLICT HERE. THIS IS ONE OF THESE PEARL GEMS THAT MAKE BERKELEY SO SPECIAL.

>> MAYOR ISHII: SORRY. IF YOU WANT TO CONTINUE -- [APPLAUSE]

>> MAYOR ISHII: THAT WAS ON ME.

>> MAYOR AND COUNCIL. THE LAST 10 YEARS, I'VE BEEN FIGHTING AFFORDABLE HOUSING IN THE SOUTH BAY. A THOUSAND HOUSING UNITS IN SANTA CLARA, I'M A -- UP HERE I'M A NIMBY. WHEN THE PENDULUM SWINGS LEFT AND RIGHT. WHEN IT HITS AMPLITUDE SERIOUS MISTAKES ARE MADE, WE'RE TRYING TO PREVENT ONE TONIGHT. THE CALIFORNIA REGISTER OF HISTORIC RESOURCES IN TWO SEPARATE PEER REVIEWS ARE SEEING THE BUILDING HAS INCREDIBLE HISTORIC MERIT. LEFT COAST ARCHITECTURES AND DEVELOPER ARE SAYING THERE IS NOTHING WORTH SAVING. NO ONE IN THE ROOM EXCEPT ONE PERSON SITTING THERE OPENED THE PATCH OF THEATER "A" AND LOOKED UP AT THAT ART DECO SPLENDOR IN THE AUDITORIUM. IT IS INCREDIBLE AND INTACT. THESE BUILDINGS ARE NOT ENDANGERED. THEY ARE BEYOND ENDANGERED. IF YOU TEAR DOWN THE U.A., IT'S EXTINCT, IT'S OVER. WE'RE NOT HERE TO ASK YOU TO VOTE THE SAVE THE THEATER. WE'RE HERE TO ASK YOU TO MAKE SURE THAT YOU FOLLOW THE LAW. A BUILDING LIKE THE U.A. IS A

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RARE PRIMARY EXAMPLE OF WHEN THE IMPLEMENTATION OF C.E.Q.A. IS APPROPRIATE. [BEEP]

>> ONCE IT'S GONE, IT'S GONE FOREVER.

>> MAYOR ISHII: THANK YOU.

>> THANK YOU. [APPLAUSE]

>> ARE LEAN, BERKELEY RESIDENT. ARELENE -- CEDING MY TIME TO ALLEN.

>> MAYOR ISHII: OKAY, TWO PEOPLE ARE CEDING -- THREE --

>> [OFF MIC]

>> MAYOR ISHII: OKAY. THREE PEOPLE ARE CEDING TEAR TIME TO YOU.

>> THANK YOU. THANK YOU, MY NAME IS ALLEN MUSHON, THE OWNER AND OPERATOR OF THE GRAND LAKE THEATER IN OAKLAND. I HAVE A LONG TIME HISTORY IN BERKELEY, IN 1972 I BUILT, OPENED AND OPERATE THE RIALTO CINEMAS ON GILMAN STREET. LATER ON OPERATED THE SUNSET THEATER ON TELEGRAPH EVERY, SUBSEQUENTLY THE FINE ARTS ON SHATTUCK. I BUILT THE SHATTUCK CINEMAS, ALSO AT TIMES OPERATED THE NORTH SIDE THEATER AS WELL AS THE OAKS THEATER ON SOLANO AVENUE. BERKELEY HAS A LONG HISTORY WITH ENTERTAINMENT. THE DOWNTOWN PLAN CALLS FOR ENTERTAINMENT. ONE OF THE EXHIBITS THAT STAFF PUT UP EARLIER IN THE DAY WAS FRAUDULENT. IT WAS AN AERIAL SITE VISIT, SITE PLAN OF WHAT WE'RE TALKING ABOUT. IT SHOWED THE U.A. BUILDING. BUT TO THE RIGHT IT ALSO SHOWED THE SHATTUCK CINEMAS BUILDING THAT IS NO LONGER THERE, IT IS A GAPING HOLE IN

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THE DOWNTOWN AND THE DEVELOPER HAS NOT BEEN ABLE TO MOVE FORWARD. IT BROKE MY HEART TO SEE SHATTUCK CLOSED. I WANT TO EXPLAIN REGAL CINEMA WERE IN DEEP FINANCIAL TROUBLE BECAUSE OF COVID. WE WERE ALL FORCED AS OPERATORS OF PUBLIC PLACES TO CLOSE OUR PLACES OF BUSINESS FOR A YEAR AND A QUARTER. AND AFTER THAT, THE PUBLIC WAS AFRAID TO COME BACK. THE GRAND LAKE WOULDN'T HAVE SURVIVED IF NOT FOR A GOVERNMENT PROGRAM, SHUTTERED VENUES OPERATORS GRANT. I RECEIVED A SUBSTANTIAL AMOUNT OF MONEY FROM THE FEDERAL GOVERNMENT TO TAKE US THROUGH THAT PERIOD. REGAL DID NOT, BIG COMPANIES WERE EXEMPTED FROM THAT GOVERNMENT HELP. SMALL OPERATORS LIKE MYSELF WERE ALLOWED AND GIVEN THE ABILITY TO STAY IN BUSINESS. SOME PEOPLE TONIGHT HAVE SAID PEOPLE DON'T GO TO THE MOVIES ANYMORE. IT IS NOT A VIABLE BUSINESS. I INVITE ANY MEMBER OF THIS COUNCIL AND CITY STAFF TO ACCOMPANY ME TO THE GRAND LAKE AFTER THE MEETING IS OVER AND YOU CAN COUNT EIGHT OR NINE HUNDRED PEOPLE WATCHING MY MOVIES IN THE GRAND LAKE BY THE TIME THE 7:30 SHOW STARTS. IT'S A VIABLE BUSINESS. IT IS STILL RECOVERING FROM COVID. AND MOST IMPORTANTLY, PLEASE DON'T LOOK AT THIS BUILDING AS A MOVIE THEATER COMING BACK, AS A MULTIPLEX COMING BACK. IT WAS A TERRIBLE MULTIPLEX. IT WAS A PRIME EXAMPLE OF BAD MULTIPLEXING OF A BEAUTIFUL OLD THEATER. BUT AT THE TIME THAT WORK WAS DONE, THE CITY COUNCIL, THE CITY PLANNERS HAD THE FORESIGHT TO SAY TO THE OWNER OF THE PROPERTY, OBJECTION --

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OKAY, WE'LL LET YOU MULTIPLEX THE THEATER BUT THE ORIGINAL ELEMENTS HAVE TO BE RETAINED. YOU BUILD YOUR NEW AUDITORIUMS INSIDE THE SHELL OF THE OLD THEATER, YOU LEAVE THE CEILING ALONE, YOU LEAVE THE PROSCENIUM ALONE. YOU CREATE SOMETHING THAT CAN BE BROUGHT BACK. I URGE YOU NOT TO LOOK AT THE THEATER NOW AS A MOVIE THEATER FOR THE DOWNTOWN BUT AS A FUTURE PERFORMING ARTS CENTER FOR THE WHOLE REGION. IT IS A FABULOUS THEATER WITH A FABULOUS STAGE. A FULL FLY LOFT RIGHT ON B.A.R.T., 15 FEET AWAY FROM THE FRONT DOOR, THIS CAN BE THE PRIDE OF BERKELEY JUST AS THE PARAMOUNT IS THE PRIDE OF OAKLAND AND CAN SERVE THE CITIZENS OF THE TOWN AND SURROUNDING COMMUNITIES FOR IS 100 YEARS. IT'S A FORTRESS BUILT LIKE MY GRAND LAKE. AND I WOULD LOVE TO SEE IT RESTORED AND PRESERVED. THANK YOU. [BEEP]

[APPLAUSE]

>> MAYOR ISHII: THANK YOU. PLEASE COME, NEXT SPEAKER. OKAY.

>> ALL RIGHT. FOLKS, COME ON.

>> MAYOR ISHII: WE WENT TO LET THE NEXT SPEAKER SPEAK.

>> I'LL ELLEN, I'LL CEDE MY TIME TO THIS GENTLEMAN.

>> MAYOR ISHII: OKAY. I LOVE THE JOY, IT'S GREAT. I WANT TO MAKE SURE WE CAN HEAR FROM EVERYONE.

>> GOOD EVENING, MAYOR, AND COUNCIL. MY NAME IS GREG KING. I HAVE OPERATED THEATERS FOR 30 YEARS IN A PAST LIFE AND IN INVOLVED IN MANY RESTORATIONS. I URGE YOU TO SUPPORT TO APPEAL

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THE ZAB DECISION AND GIVE THE THEATER THE PROPER AND LAWFUL ASSESSMENT IT DESERVES. IT IS A PRIMARY AND IRREPLACEABLE EXAMPLE OF ART DECO, RETAINS MOST ORIGINAL FIXTURES AND DECORATION. THE PUBLIC LOBBY AND LOUNGE AREAS ARE IMPRESSIVE, THE MIND-BLOWING PART IS THE AUDITORIUM CEILING, AND GRILLS, BEHIND THE SHEET ROCK MULTIPLEX WALLS. I'M ONE OF THE FEW WHO HAVE SEEN THIS. THE U.A. HAS ENTERTAINED MULTIPLE GENERATION FOR 90 YEARS. THE ROBUST STEEL AND CONCRETE FRAME AND RESTORED INTERIOR CAN BE A RELEVANT PART OF THE DOWNTOWN, A LIVE VENUE OF CONTINUING AS A MULTIPLEX, THE THEATER HAS GENERATIONS OF LIFE LEFT TO GIVE. I IMPLORE YOU TO DO THE RIGHT THING. THE BUILDING IS ON THE CALIFORNIA HISTORICAL RESOURCE LIST AND ELIGIBLE TO BE ON THE NATIONAL REGISTER OF HISTORICAL PLACES. DESERVES A C.E.Q.A. EVALUATION, EXEMPTING IT IS AGAINST THE LAW. ONCE DEMOLITION IS STARTED, IT IS NOT REVERSIBLE. THE UNITED ARTS IS TOO IMPORTANT TO END UP IN A LANDFILL. GIVE THE TIME TO BE ASSESSED. DO NOT LET THE BUILDING DISAPPEAR AND BECOME A CRATER LIKE THE SHATTUCK CINEMAS. I SUGGEST TO MAKE SURE THE FUNDING ISIS PLACE BEFORE A DEMOLITION PERMIT IS ISSUED AND DOCUMENT THIS ART DECO JEWEL BEFORE ITS FINAL ACT. THANK YOU. GOOD EVENING, AND THANKS FOR LISTENING.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> MADAM MAYOR, COUNCILMEMBERS. THANK YOU FOR LETTING ME SPEAK.

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I'M KRISTEN SCHULTZ, BERKELEY IS MY HOMETOWN AND I'M A RESIDENT. I'VE NEVER BEEN TO READ. BERKELEY'S DOWNTOWN AND MOVIE CINEMAS AS A FRIEND WHO COMES HOME TO VISIT HIS PARENTS, NO NOT A PEATSA -- [SPEAKING FOREIGN LANGUAGE] WE CAME DOWN AND WALKED AROUND DOWN. I THINK THAT'S WHAT WE HAVE TO KEEP IN MIND WHEN WE LOOK TO FUTURE GENERATIONS. YOUNG PEOPLE ARE GOING TO WANTS TO BE AMONG PEOPLE TOGETHER IN THE REAL WORLD. AND SOME OF OUR DOWNTOWN VENUES ARE SPECTACULAR, BUT I DON'T HAVE $175 TO GO TO THE THEATER AND YOUNG PEOPLE DON'T EITHER. WE NEED TO PRESERVE OUR SPACES. IF WE DON'T, WHAT DO WE DO WHEN WE NEED THEM FOR CLIMATE INCIDENCES. WE REMEMBER THE ORANGE SUMMERS. WHERE DID YOU GO TO BREATHE? THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> GOOD EVENING. I'M BRAD. A BERKELEY RESIDENT, U.C. BERKELEY ALUMNI. I'VE BEEN IN BERKELEY SINCE 1990. AND I WOULD ASK THAT YOU DO THE REVIEW. I THINK 23 AFFORDABLE UNITS ON THIS NICE SHINY TOWER ON THE SCHEMATICS IS NOT REALLY A GOOD NUMBER OF AFFORDABLE UNITS. PARK THEATER -- [APPLAUSE]

>> IS NOW LIGHTING UP THEIR OLD THEATER IN LAFAYETTE, THE FILM MAKER HERE. IMAGINE A BERKELEY INTERNATIONAL FILM FESTIVAL, HOW MUCH MONEY WOULD THAT BRING TO DOWNTOWN SAN FRANCISCO. THE THEATER WAS SAVED. THEY REBUILT I MADE A LIVE VENUE. WE HAVE THE LAFAYETTE. I HAVE TO GO TO ORINDA NOW, BECAUSE WE DON'T HAVE ONE

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IN BERKELEY. THERE IS FILM FESTIVALS, MILL VALLEY, THE PRIVATE FOUNDATIONS ARE HELPING LAFAYETTE, THEY RAISED $2 MILLION.

[BEEP]

>> PLEASE DO THE REVIEW. [APPLAUSE]

>> MAYOR ISHII: THANK YOU.

>> HI, MY NAME IS CHRISTINE, A LONG TIME BERKELEY RESIDENT. I THINK IN A DISPUTE LIKE THIS WE HAVE PEOPLE OF GOOD FAITH ON BOTH SIDES. IT HELPS TO GET MORE INFORMATION. AND UNDER THE LAW, THERE REALLY SEEMS TO BE A LOT OF SUPPORT TO DO THIS INSPECTION, AND FIGURE OUT IS THE THEATER REALLY SEISMICALLY SAFE? DOES IT REALLY HAVE ALL THESE BEAUTIFUL ART DECO ORNAMENTS? I KNOW WHAT I'VE SEEN GOING THERE, THE STAIRCASE, THE MEDALLIONS, THE CEILING MURALS THE NEW DEVELOPMENT DOESN'T SEEM TO RETAIN, THE MARQUEE DOESN'T SEEM TO BE RETAINED IN THE NEW DEVELOPMENT. QUITE A BIT IS GOING TO BE SHEERED OFF. I WOULD LIKE YOU TO LOOK AT WHAT WE HAVE AND CONSIDER EVERYONE HERE WHO WE ALL WANT TO BUILD HOUSING BUT WE'VE BEEN LOSING A LOT OF THINGS IN BERKELEY AND EVERYONE HAS SOMETHING THEY LOVE THEY WOULD LIKE TO RETAIN

[BEEP]

>> I THINK YOU NEED TO LOOK INTO WHAT WE REALLY HAVE.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> HI. MY NAME IS SARA BELL. I'M HERE TO SPEAK IN FAVOR OF THE PROJECT AND AGAINST THE APPEAL. THERE ARE LEGAL MERITS WHICH I

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BELIEVE FAVORER THE HOUSING PROJECT AND THE REALITY ON THE GROUND. IF YOU SIT IN THE THEATER, IT'S NOT THE GRAND LAKE THEATER, IT'S A SHABBY MULTIPLEX. PULL BACK THE LITERALLY CURTAINS AND YOU WILL SEE CRUMBLING CONCRETE. THE BUILDING IS LITERALLY UNSAFE FOR THOSE INSIDE IT AND FOR STRUCTURES AROUND IT. TO FINANCE SAVING THE FACADE AND LOBBY, THE LAST ORIGINAL PARTS REMAINING, WE NEED TO FIND A NEW USE FOR THE SITE. THANKFULLY, NOT THANKFULLY, BERKELEY NEEDS HOUSING AND THE DEVELOPER PROPOSING THE PROJECT PLANS TO PRESERVE THE FA SOD AND LOBBY, THE -- FACADE. LET'S BUILD HOMES FOR THEATER GOERS TO COME. THANK YOU.

>> MAYOR ISHII: THANK YOU. OKAY, FOLKS.

>> GOOD EVENING. AND THANK YOU FOR YOUR ATTENTION. MY NAME IS SUMMER BRENNER. AND I JUST WANT TO PUT A PLUG IN FOR ALL THE THEATERS THAT USED TO BE HERE AND ALSO THE VERY LOGICAL REASONING, HISTORICAL REASONING THAT WE HEARD ABOUT COVID BEING SO DEVASTATING FOR OUR PUBLIC PLACES. NOW THERE IS AN OPPORTUNITY TO PRESERVE THE PUBLIC PLACES ABOVE AND BEYOND WHAT WAS LOST IRREVOCABLE LOST. LET ME SAY SOMETHING ABOUT HOUSING. WE ALL WANT HOUSING. I THINK IT'S DISINGENUOUS TO THINK STUDENTS ARE MOVING INTO THE KENNEDY TOWER THERE. THAT'S JUST VERY UNREALISTIC. AND WE'RE GOING TO HAVE A MEETING NEXT WEEK ABOUT MIDDLE HOUSING AND THAT'S GOING TO HOPEFULLY ADDRESS THE

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AFFORDABILITY CRISIS BECAUSE THE HOUSING CRISIS IS --

AFFORDABILITY CRISIS. ONE MORE THING [BEEP]

>> MAYOR ISHII: SORRY, YOUR TIME IS UP.

>> ONE MORE WORD, AESTHETICS. THANK YOU.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> HI, KAREN WESTMONT, I LIVE ON ROSE STREET. I OFFERED ONE BIT OF INFORMATION YOU WOULD FIND IF YOU DID A C.E.Q.A., THE UNITED ARTISTS THEMSELVES WERE SIGNIFICANT, PART OF A LABOR MOVEMENT IN ESSENCE, THEY FORMED THE REASON CHARLIE CHAPLAIN. ON THE POINT ABOUT HOUSING, I USED TO DO THE REGIONAL HOUSING NEEDS DETERMINATION FOR THE STATE OF CALIFORNIA. I DID THOSE DETERMINATIONS FOR 71% OF THE STATE'S COUNTIES, NOT THE BAY AREA, BERKELEY WAS NEVER SUPPORTIVE OF THE HOUSING NUMBERS IT WAS ASSIGNED. 94 THAT YOU'VE GOT -- NOW THAT YOU'VE GOT AN OPPORTUNITY, I WANT TO SUGGEST SOMETHING ELSE, HOUSING IN THE SAN JOSE IN THE THOUSANDS ONLY INCREASED [BEEP] HOUSEHOLDS BY 4 OR 35 -- 500. THE THOUSANDS OF UNITS DIDN'T GO FOR RESIDENTS.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> HI, MY NAME IS KAVIA. AND I'M A STUDENT AT U.C. BERKELEY. I'VE LISTENED TO PEOPLE SPEAK WITH LOVE. AND IT'S CLEAR THE PLACE MEANT SOMETHING. TO LIVE HERE LONG ENOUGH TO BUILD MEMORIES. AND I WANT THAT SAME CHANCE. SO MANY OF MY FRIENDS CAN'T AFFORD FORD TO SAY HERE. THEY ARE COMMUTING HOURS JUST TO

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BE HERE. THIS PROJECT CREATES 227 NEW HOMES, INCLUDING 23 DEEPLY AFFORDABLE HOMES AND RESTORES HISTORIC LOBBY. IT BRINGS A NEW LIFE TO A BUILDING THAT IS EMPTY AND UNSAFE. EVEN WHEN OFFERED A DOLLAR A YEAR, THE THEATER COULDN'T SURVIVE. ALL HAVE AGREED THE PROJECT QUALIFIES FOR A C.E.Q.A. EXEMPTION. I THINK IT'S TIME TO MOVE FORWARD AND I THINK THE CITY SHOULD APPROVE THE PROJECTS SO STUDENTS CAN CONTINUE TO BUILD A FUTURE HERE. THANK YOU.

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> MAYOR ISHII: FOLKS, YOU KNOW WHAT, WHEN YOU ARE GIVING YOUR COMMENTS PEOPLE WERE RESPECTFUL AND ALLOWED YOU TO SPEAK. I WOULD LIKE THE SAME FOR THEM.

>> MY NAME IS THEO, HERE TO ASK YOU TO REJECT THE APPEAL AND APPROVE THE HOUSING. I DON'T WANT YOU TO LISTEN TO ANYONE ELSE IN THE ROOM. WE'RE NOT NORMAL. NORMAL PEOPLE DON'T EXCEPT TUESDAY NIGHTS WAITING FOR HOURS TO GIVE 60 SECONDS OF COMMENT. WE DON'T REPRESENT BERKELEY, THAT IS YOUR JOB. THE PEOPLE OF BERKELEY SAID THEY WANT MORE HOUSING. THEY REJECTED TWO FORMER MEMBERS OF THE BODY WHO CONSTANTLY FOUND REASONS TO OPPOSE COUNSELS AND A MAYOR WHO CAMPAIGNED ON ENDING THE CRISIS IN SACRAMENTO WAS WORKING TO TRY TO PASS A BILL WHICH WOULD EXEMPT MORE INFILL PROJECTS FROM C.E.Q.A. BECAUSE SHE KNOWS FRIVOLOUS APPEALS DO NOT PROTECT THE ENVIRONMENT AND PROJECTS IN INFILL HOUSING SHOULD NOT BE HELD UP BY PEOPLE WITH A LOT OF TIME ON

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THEIR HANDS. ASSEMBLYMEMBER WICKS MADE A CAREER OF CHAMPIONING HOUSING -- [BEEP]

>> MAYOR ISHII: YOU CAN FINISH YOUR SENTENCE.

>> PLEASE BUILD MORE HOUSING. THAT'S WHAT WE WANT. THANK YOU. [APPLAUSE]

>> DEAR MAYOR AND COUNCIL, IT'S NOT MIXED USE IF THE GROUND FLOOR RETAIL REMAINS VACANT. WE HAVE A LOT OF BLIGHT IN DOWNTOWN BERKELEY RIGHT NOW. AND IT'S NOT A VIBRANT DOWNTOWN WITHOUT A MOVIE HOUSE. WE HAVE NOT BOUNCED BACK FROM THE TERRIBLE ISOLATION OF THE COVID SHUTDOWNS AS A CITY OR AS A CULTURE. IT IS IN THE INTEREST OF THE CITY TO NOURISH THESE THIRD PLACES, NEITHER HOME NOR WORK WHERE COMMUNITY HAPPENS. LIBRARIES ARE GREAT BUT THEY CLOSE AT NIGHT. THE U.A. THEATER RESTORED COULD BE A CIVIC JEWEL. 30 YEARS AGO, THERE WERE 20 OR SO MOVIE SCREENS IN DOWNTOWN BERKELEY AND NOW THERE ARE NONE. THANK YOU FOR STANDING UP FOR THE RULE OF LAW. [APPLAUSE]

>> MAYOR ISHII: THANK YOU.

>> GOOD EVENING, MAYOR, AND COUNCIL. MY NAME IS BILL CHARADER. I PURPOSELY WAITED TO GO CLOSE TO LAST SO I DON'T HAVE TO REPEAT WHAT'S ALREADY BEEN SAID BY MANY OTHERS. ONE OF THE THINGS I WOULD LIKE TO SAY IS I APPRECIATE THE PASSION BY ALL THE FOLKS HERE TONIGHT WHO WANT TO SAVE THIS FACILITY. HOWEVER, SOMETIMES IT'S REALLY BETTER TO KIND OF STEP BACK AWAY FROM THE BARK AND

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LOOK AT THE TREES AND THE FOREST. ONE THING THAT'S NOT BEEN DISCUSSED THAT I WANT TO BRING UP IS EVEN IF THIS GROUP WAS ABLE TO FIND A BENEFACTOR, I DON'T KNOW, BILL GATES OR SOMEBODY ELSE, TO TEAR THIS BUILDING DOWN BECAUSE IT'S NOT STRUCTURALLY SOUND AND BUILD A NEW THEATER, I.E. SIMILAR TO THE FOX OR PARAMOUNT, WHAT WOULD THAT DO TO FREIGHT THAT IS STRUGGLING, THE U.C. THEATER, STRUGGLING, I DON'T KNOW THE IMPACT ON THE GREEK, I DON'T THINK THIS IS A GOOD USE OF THIS PARTICULAR PROPERTY. THANK YOU.

>> MAYOR ISHII: THANK YOU. I KNOW THERE ARE FOLKS STANDING NEAR THE WALL. ARE YOU COMING TO SPEAK? NO, OKAY. GO AHEAD.

>> HI. MY NAME IS FOREST GRAY. MY GRANDFATHER WENT TO U.C. BERKELEY IN '38. I WENT TO BERKELEY HIGH, CLASS OF '84. I CAN'T AFFORD TO LIVE IN BERKELEY, I HAVE TO LIVE ON 62NDAND BANCROFT. THERE IS NO WAY I'M GOING TO BE ABLE TO LIVE IN THAT TOWER. I CAN'T MOVIE TO BERKELEY AND LIVE IN THAT TOWER. YOU NEED A REASON TO COME TO DOWNTOWN. THERE IS NO REASON TO COME TO DOWNTOWN. THERE IS A TWO-BIT PUNK ROCK CLUB THAT EVERYBODY BENT OVER BACKWARDS. THE THEATER GOT THE CARTE BLANCHE TREATMENT REBUILT IN THE CITY RECENTLY. YOU KNOW, YOU CAN'T FILL A SCHOOLS IN SAN FRANCISCO, HOUSING IS NOT REALLY A PROBLEM. THE PRICE OF RENTS IN THE EAST BAY THAT ARE THE PROBLEM. SAVE THE U.C. THEATER. DO WHAT THEY DID AT THE FOX, MAKE IT HAPPEN. THE FOX

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THEATER SINGLE-HANDEDLY REVISED DOWNTOWN OAKLAND PERIOD.

[APPLAUSE]

>> MAYOR ISHII: THANK YOU. OUR FINAL IN-PERSON COMMENTER I BELIEVE.

>> GOOD EVENING, MY NAME IS JADEN, SPEAKING IN OPPOSITION. I DO NOT UNDERSTAND THIS PLAN THAT SEEMS TO BASICALLY REMOVE A LOT OF THE EXISTING CULTURE, HOWEVER LONG IT'S BEEN IN DOWNTOWN TO REPLACE WITH HOMES THAT ARE NOT AFFORDABLE. THERE IS A SMALL PORTION THAT MIGHT GO TO A FEW PEOPLE WHILE THE REST IS INCREASINGLY BEYOND ANYTHING IN EXISTENCE. AND HIGHER AND HIGHER BUILDING ALL COMING IN AT THE SAME TIME, BLOCKS HAVE BEEN SHUT DOWN FOR BUILDINGS THAT DON'T HAVE FUNDING. WHAT IS THERE? NOTHING. YOU WANT TO BUILD A CONCENTRATED DOWNTOWNS FOR PEOPLE TO ENJOY, BY ONLY BUILDING HOMES FOR PEOPLE TO COME INTO AND GO ELSEWHERE. WE NEED MORE OF WHAT IS ALREADY AROUND. REVITALIZED. NOT OPERATING IN MIXED USE OR LIVED IN THERE ABOVE THE AVERAGE PRICE. [APPLAUSE]

>> MAYOR ISHII: THANK YOU. ANY OTHER IN-PERSON COMMENTS? IF NOT, WE'RE GOING TO MOVE ONLINE.

>> OKAY. WE CURRENTLY HAVE 11 HANDS RAISED ON ZOOM. 12. 13. IF YOU ARE INTERESTED IN PROVIDING PUBLIC COMMENT, PLEASE USE THE RAISED HAND FUNCTION ON THE ZOOM. AND WE WILL BEGIN CALLING ON SPEAKERS, FIRST IS GALE SIMPSON.

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>> CALLER: I YIELD MY TIME TO MADELINE ROBERTS.

>> MADELINE ROBERTS IS THE NEXT SPEAKER AND SHE WILL HAVE 2 MINUTES.

>> HI THE. BERKELEY HIGH SCHOOL, CLASS OF 2012. A FORMER HOME BUILDER, I RECOGNIZE HOME BUILDERS ARE TRYING TO DO THE LORD'S WORK AS POLICYMAKERS. HOWEVER, LET ME TELL YOU THIS, I AM TYPICALLY ONE OF YOU. BUT IN THIS CASE, THERE ARE HUNDREDS OF SITES INCLUDED IN THE BERKELEY HOUSING ELEMENT WHICH WAS A HERCULEAN EFFORT BY THE CITY TO PAVE WAY FOR HOUSING DEVELOPMENT SITES AND THAT WAS AN ENORMOUS PROCESS, 2274 SHATTUCK IS CONSPICUOUSLY NOT ONE OF THEM. THE DOWNTOWN AREA PLAN, THE CULMINATION OF HUNDREDS OF PUBLIC MEETINGS, SEVEN YEARS, AND DEMOCRATIC PROCESS MANY RETAILERS BOUGHT OR RENTED SPACES ACCORDINGLY WITH, STILL STANDS AND MANY POLICIES ARE OFFERED. PATRICK KENNEDY CLOSED ON THE LAND KNOWING THIS SITE WAS NOT INCLUDED IN THE UPDATED HOUSING ELEMENT, THEREFORE STILL GOVERNED BY THE DOWNTOWNS AREA PLAN. HE TOOK ON THE RISK. I DON'T KNOW IF HE HAS A SUPERB LAND BASIS -- CRIN WORLD IS GOING THROUGH GLOBAL RESTRUCTURING AT THE TIME IT PULLED OUT. I DON'T BELIEVE THAT COMMENT WAS IN GOOD FAITH. MILL VALLEY, THE MARINA DISTRICT, HAZE VALLEY, LAFAYETTE, ELMWOOD, UPTOWN OAKLAND, THESE ARE PLACES YOU WANT TO MEET FRIENDS IN, THE THIRD PLACES, THEY HAVE FOUGHT LIKE HELL TO PRESERVE THEIR MOVIE THEATERS. I HAVE A

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BROTHER-IN-LAW FROM AUSTRALIA, PRE-COVID HE WAS IN BERKELEY, HE WENT TO AN ANIMATION FILM FESTIVAL. I CARE ABOUT PROVIDING ACCESSIBLE AND EQUITABLE THIRD PLACES -- [BEEP]

>> MAYOR ISHII: THANK YOU. THANKS FOR YOUR COMMENT.

>> CLERK: NEXT IS KATE BOLTON SCHMUCKLER.

>> HI THERE. SO I JUST WANTED TO SUPPORT THE THEATER BEING LOOKED OVER CAREFULLY BY FOLLOWING THE LAW. I WANT TO SUPPORT THE FOLKS THAT WANT THE THEATER TO STAY PUT BECAUSE ONCE IT'S GONE IT'S GONE. I CAN'T AFFORD BERKELEY EITHER. I'M SLUMMING IN EL CERRITO. BORN AND RAISED IN THE BAY. I CAN'T AFFORD LIVE STUFF A LOT. BUT THEATERS, MOVIES ARE SOMETHING A LOT MORE AFFORDABLE. AND I DO THINK WE NEED TO VALUE OUR THIRD SPACES, ESPECIALLY WITH FASCISM ON THE RISE, WE NEED SAFE PLACES TO BE IN A COMMUNITIES TOGETHER. I THINK IT'S EITHER OR, IT'S NOT HOUSING OR A THEATER, LET'S GET CREATIVE. MAYBE WE CAN HAVE BOTH. ONCE ART DECO ICON IS GONE, THERE IS NO WAY ANYONE IS GOING TO BUILD IT [BEEP]

>> MAYOR ISHII: THANK YOU. [APPLAUSE]

>> MAYOR ISHII: THANKS.

>> CLERK: NEXT IS HARVEY SMITH. HARVEY, YOU SHOULD BE ABLE TO UNMUTE.

>> CALLER: HI, I'M SORRY. I JUST WANT TO POINT OUT A BROADER PERSPECTIVE HERE. THE NATIONAL TRUST FOR HISTORIC PRESERVATION,

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THE COUNTRY'S LEADING PRESERVATION ORGANIZATION HAS RECENTLY FEATURED THE PRESERVATION OF A NUMBER OF HISTORIC THEATERS ACROSS THE COUNTRY. LET ME QUOTE, THE PRESIDENT AND CEO WHO UNDER SCORED QUOTE, THE INDISPUTABLE TRUTH THAT HISTORIC PRESERVATION DOESN'T STIFLE PROGRESS, IT FUELS IT BUT REINVESTING IN HISTORIC PLACES UNLOCK THEIR POTENTIAL TO FOSTER ECONOMIC DEVELOPMENT, SUSTAIN LOCAL CHARACTER AND ENHANCE PEOPLE'S LIVES IN BOTH IMMEDIATE AND LASTING WAYS. SO THE QUESTION THAT I WANT TO BRING TO YOU THE ONE THAT I ASK IS BERKELEY HAS BEEN ON THE FOREFRONT OF SO MANY IMPORTANT ISSUES. WHY IS BERKELEY NOW SO FAR BEHIND WITH THIS, ON THE ISSUE OF PRESERVATION. [BEEP]

>> MAYOR ISHII: THANK YOU.

>> CLERK: THANK YOU. [APPLAUSE]

>> MAYOR ISHII: CAN I CHECK IN HOW MANY COMMENTS DO WE HAVE?

>> CLERK: STILL 13.

>> MAYOR ISHII: 13.

>> CLERK: ELANA AUERBACH.

>> MAYOR ISHII: ARE FOLKS FEELING LIKE THEY NEED A STRETCH BREAK? YOU ARE OKAY?

>> CLERK: 12 MORE.

>> MAYOR ISHII: I THINK WE SHOULD TAKE A BREAK AFTER THE 12, THAT IS A LONG TIME FOR US TO BE SITTING. GO AHEAD.

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>> CALLER: GOOD EVENING, EVERYONE. WITH SO MANY OF THE DOWNTOWN CONSTRUCTION PROJECTS STALLED BY THE DEVELOPERS TO A DATE UNCERTAIN, IMAGINE IF YOU DON'T REQUIRE THE C.E.Q.A. IF YOU DON'T FOLLOW THE LAW. AND THIS PROJECT GOES THE WAY OF SO MANY OTHERS. YOU'LL FEEL HORRIBLE. IT WON'T BE A GOOD FEELING FOR ANYBODY. JUST ABIDE BY THE LAW. BECAUSE NOT ONLY IS IT THE LAW BUT IT WOULD BE SO REFRESHING IN OUR CURRENT POLITICAL CLIMATE. AND THEN IN THE MEANTIME, WE CAN PARTNER WITH THIS POTENTIALLY 100,000 PEOPLE STRONG COMMUNITY IMPASSIONED TO HAVE A COMMUNITY SPACE. THIS IS WHAT WE NEED. AND WE CAN DO THIS. THE CITY COUNCILS IN OAKLAND AND RICHMOND AND THE PREVIOUS SPEAKER NAMED SO MANY OTHERS, HAVE DONE, HAVE DONE THAT, HAVE PARTNERED WITH THE COMMUNITY AND PRESERVED THEATERS IN THEIR CITY. PLEASE REQUIRE THE C.E.Q.A. THANK YOU.

>> CLERK: LILIAN KING.

>> CALLER: ON MY WIFE'S COMPUTER. I'M A WRITER AND BERKELEY RESIDENT OF 16 YEARS. I USED TO TAKE PRIDE IN TELLING MY FRIENDS I LIVE WITHIN WALKING DISTANCE OF FOUR MOVIES THEATERS. SCARRED BY ROWS OF BLIGHT NOW. SUMMER '23, BARBENHEIMER'S REAWAKENED THE MOVIE GOING MUSCLE. THE HOLLYWOOD REPORTED, FIVE DAYS SORED TO AN -- DOUBLE FEATURE SCORED ANOTHER BLOCK BUSTER HALL. THAT ENERGY CAN RETURN TO DOWNTOWN BERKELEY, SEE THE SELL OUTLINES, THE COLLEGE AND ASHBY ANCHORED BY THE THEATER, THE FAMILIES

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FLOCKING TO MOVIES EACH SUMMER. I ENTHUSIASTICALLY VOTED FOR THE -- BUSTLING STREETS, THRIVING RESTAURANTS AND MOVIE THEATERS LIKE MANHATTAN. [BEEP]

>> MAYOR ISHII: THANK YOU.

>> CLERK: NEXT IS CHANCE BORECZKY.

>> GOOD EVENING, MAYOR, AND CITY COUNCIL. I'M HERE ON BEHALF OF EAST BAY FOR EVERYONE. SOME ARE TALKING AS THOUGH THE COUNCIL HAS A DISCRETION TO CONDUCT A C.E.Q.A. REVIEW OR NOT. THAT IS NOT THE QUESTION BEFORE US TONIGHT. THE QUESTION IS WAS ACTING IN ACCORDANCE WITH THE LAW AND AB1633 WHEN GRANTED A CATEGORICAL EXEMPTION. I THINK THE EVIDENCE IS MASSIVELY SUBSTANTIAL THEY WERE. AND PAST THAT, NOTHING HERE REALLY MATTERS. THIS IS A QUESTION ABOUT WHOSE SIDE THE LAW IS ON AND WHETHER ZAB ACTED CORRECTLY. GETTING INTO THOSE EXTRA-LEGAL CONCERNS, THE ONLY WAY TO MAINTAIN ATTRACTIVE AMENITIES TO HAVE PEOPLE LIVE NEAR THEM. IF THE APPELLANTS DONATED IT TO THE PARKWAY -- [BEEP]

>> MAYOR ISHII: THANK YOU.

>> CLERK: OKAY, NEXT WE HAVE ANDREW TALBOT.

>> CALLER: HI, YES, GLAD FOR THE OPPORTUNITY TO BE ABLE TO TALK ABOUT THIS. I WANT TO SECOND THE PERSON WHO SAID YOU SHOULDN'T LISTEN TO US, THE PEOPLE THAT ARE WILLING AND ABLE TO SHOW UP OR TALK ON ZOOM. ARE NOT REPRESENTATIVE OF BERKELEY. YOU ARE ELECTED TO MAKE DECISIONS FOR BERKELEY AND RESPONSIBLE ON THE

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LAW, AND HOPEFULLY YOU DO NOT REJECT THE HOUSING AND HAVE TO GET SUED AGAIN BECAUSE YOU REJECT HOUSING. PLEASE FOLLOW THE LAW. AND APPROVE THIS HOUSING. THANK YOU.

>> CLERK: OKAY.

>> MAYOR ISHII: THANKS.

>> CLERK: NEXT IS KELLY HAMMARGREN.

>> CALLER: OKAY. I WISH WE STILL HAD FILM IN BERKELEY. ARE YOU GETTING AN ECHO? BECAUSE I AM.

>> MAYOR ISHII: NO, NO ECHO HERE.

>> CALLER: OKAY. I WISH WE STILL HAD FILM IN BERKELEY. BUT IF YOU SHOULD APPROVE THIS PROJECT PLEASE APPLY TO THIS PROJECT THE LAST PERMIT ORDINANCE. IT IS WRITTEN AS ONE YEAR AND SO FAR IT'S RARELY ENFORCED. BUT COUNCIL HAS PREVIOUSLY MADE A SECTION -- EXCEPTION AND APPLIED TWO YEARS TO THE LAST PERMIT. I THINK I DON'T WANT ANYMORE DEAD ZONES AND HOLES WITH STALLED PROJECTS IN OUR CITY. AND SO I ASK THAT YOU WOULD APPLY A TWO-YEAR LAPSE PERMIT IF THEY ARE NOT INITIATING CONSTRUCT THE ENTITLEMENT GOES AWAY. SO THAT'S MY COMMENT. I CAN'T SEE THE CLOCK.

>> MAYOR ISHII: THANKS, KELLY. YOU FINISHED RIGHT ON TIME.

>> CLERK: OKAY, NEXT WE HAVE ZANDRA CASTLETON.

>> CALLER: HI, I CAN'T TELL -- CAN YOU HEAR ME?

>> MAYOR ISHII: YES.

>> CALLER: HI, MAYOR ISHII, AND COUNCIL. I'M AN ADJUNCT

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PROFESSOR BERKELEY RESIDENT AND PARENT OF A GRADUATING BERKELEY HIGH STUDENT. AS A PARENT OF A STUDENT WHO HAS BEEN ESSENTIALLY LIVING IN THE DOWNTOWN AREA BECAUSE OF BERKELEY HIGH, IT'S BEEN VERY TOUGH AND DISHEARTENING, I WANT TO SAY I THINK THE IDEA THAT THIS QUESTION IS HOUSING VERSUS A MOVIE THEATER IS A FALSE EQUIVALENCY, I THINK THIS GROUP IS RIGHTLY ASKING FOR DUE DILIGENCE. AND I THINK OF SAN FRANCISCO NOW DESPERATELY TRYING TO BRING PEOPLE BACK INTO THE DOWNTOWN. AND I THINK WHAT WE WOULD SEE IS -- [BEEP]

>> MAYOR ISHII: I'M SORRY, YOUR TIME IS UP. THANK YOU SO MUCH.

>> CLERK: NEXT IS MARK SIEGEL.

>> CALLER: HELLO, SAM HERE. ENJOYED THE BEAUTIFUL DETAILS IN THE U.A. WHEN I WENT. CONTRARY TO PATRICK KENNEDY'S FALSEHOODS, CONFERENCES, CONCERTS, FESTIVALS, YOU NAME IT. THERE ARE MORE APPROPRIATE SITES FOR HOUSING BUT THE THEATER IS IRREPLACEABLE. IN L.A., A STRUCTURAL ISSUES -- [CAPTIONER SWITCH]

>> CALLER: DONNA WEST. -- I AM A 40 YEAR RESIDENT OF THE BAY AREA. AND I UNDERSTAND THE HOUSING AND THE PRICES THAT WE HAVE TO HAVE. BUT LET'S MOVE INTO THIS NEW BUILDING. WHERE IS THE ENTERTAINMENT IN DOWNTOWN BERKELEY THAT WE WILL HAVE TO GO TO? DO THE REVIEW. BOTH OF THESE BUILDINGS MAY COEXIST. AS RESIDENTS OF THE NEW BUILDING, WE NEED A PLACE TO GATHER AND ENJOY WITH EACH OTHER THESE THEATERS ARE OPEN ACROSS THE COUNTRY. THEY ARE

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BOOMING NOW. PLEASE LEAVE THE RESIDENTS LIVING IN THE APARTMENT COMPLEX THAT WE'RE BUILDING A PLACE TO GATHER FOR MOVIE THEATER ENTERTAINMENT TO GET OUT OF THEIR CLOSET LIVING. THESE TWO BUILDINGS MAY COEXIST. LET THE PUBLIC GO IN AND SEE BEHIND THE PARTITIONS. [BEEP]

>> MAYOR ISHII: THANK YOU, I'M SORRY YOUR TIME IS UP.

>> CLERK: NEXT IS CHERYL DAVILA, FORMER COUNCILMEMBER.

>> CALLER: THANK YOU. CAN YOU HEAR ME?

>> CLERK: YES.

>> CALLER: SO IT'S AMAZING THAT THE OWNERS OF SEVERAL THEATERS AND FILM MAKERS WERE AT THE MEETING TONIGHT. THANK YOU TO THE GRAND LAKE, WHICH IS AN AMAZING THEATER. I JUST SAW FREAKY TALES, THEIR PREMIER. AND WOULDN'T THAT BE NICE IF BERKELEY COULD HAVE A THEATER DOWNTOWN TO HOLD AN EVENT THAT WAS SO AMAZING? [APPLAUSE]

>> CALLER: BUT YOU KNOW, BERKELEY'S DOWNTOWN IS VACANT. AND YOU KNOW, THE PLANNING DEPARTMENT ALWAYS SIDES WITH PATRICK KENNEDY OR ANY OTHER MULTIMILLION DOLLAR DEVELOPER. YOU SHOULDN'T DO THE -- YOU SHOULD DO THE C.E.Q.A., DO WHAT YOU ARE SUPPOSED TO DO WHEN YOU ARE SUPPOSED TO DO IT. MARKET RATE HOUSING IS NOT NEEDED IN BERKELEY ANYMORE. [BEEP]

>> MAYOR ISHII: THANK YOU. YOUR TIME IS UP. THANK YOU.

>> CLERK: NEXT IS DAVID ROBERTS.

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>> CALLER: I YIELD MY TIME TO MADELINE ROBERTS TO FINISH HER STATEMENT.

>> CALLER:

>> CLERK: SHE ALREADY SPOKE.

>> CALLER: THEN I'LL SPEAK. ADJUNCT PROFESSOR AT U.C. BERKELEY. ATTENDED GRADUATE SCHOOL AT BERKELEY. I LOVED GOING TO THE MOVIES EVERY TIME I HAD AN EVENING OFF. I RECENTLY ATTENDED ELMWOOD AND IT WAS A WONDERFUL EXPERIENCE TO GO THERE DURING THE DAY. IT NO LONGER EXISTS IN DOWNTOWN BERKELEY. YOU CAN DO THE RIGHT THING. YOU CAN IMPOSE, FOLLOW THE STRICT LETTER OF THE LAW, NOT WHAT YOUR STAFF TELLS YOU THEY ACCOMPLISHED BY THEIR "CEQA REVIEW PROVISIONS". THANK YOU.

>> CITY CLERK: OKAY. MADELYN ALREADY SPOKE AND HARVEY ALREADY SPOKE. THAT'S ALL OF THE ONLINE COMMENTERS.

>> MAYOR ISHII: OKAY, THANK YOU VERY MUCH. I WOULD LIKE TO GIVE US ACTUALLY 15 MINUTES TO TAKE A BREAK. WE HAVE BEEN SITTING A WHILE, AND I KNOW WE WANT TO DO SOME COMMENTS STILL. I'M REALLY TRYING TO MODEL SOME SELF-CARE. I ENCOURAGE YOU ALL TO GET UP AND HAVE A STRETCH BREAK AS WELL. GET SOME WATER. [RECORDING STOPPED] [BREAK]

>> MAYOR ISHII: HERE WE GO. HI, FOLKS. OUR BREAK HAS COME TO AN END. IF I COULD PLEASE HAVE YOU TAKE YOUR SEATS. THANK YOU, EVERYONE. I APPRECIATE THE LIVELY CHATTER. THAT'S NICE. ALL

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RIGHT, SO WE HAVE, JUST TO RECAP, WE DID THE STAFF REPORT, PRESENTATION FROM THE APPELLANT, PRESENTATION FROM THE APPLICANT, WE TOOK PUBLIC COMMENT, BOTH IN PERSON AND ONLINE, NOW WE ARE BACK IN PERSON TO GO OVER COUNCIL COMMENTS AND QUESTIONS. SO I WILL LOOK TO MY PARLIAMENTARIAN HERE TO SEE IF ANYONE WOULD LIKE TO BEGIN. OH, AND I WANT TO ACKNOWLEDGE WE HAVE BOTH COUNCILMEMBERS KESARWANI AND TREGUB, I THINK, STILL ON OUR ZOOM. SO PERHAPS, ACTUALLY, COUNCILMEMBERS, IF ONE OF YOU WOULD LIKE TO GO FIRST, SINCE YOU ARE ONLINE? COUNCILMEMBER TREGUB AND KESARWANI, ARE YOU THERE?

>> R. KESARWANI: YES, I'M HERE. AND I DO NOT HAVE ANY QUESTIONS OR COMMENTS AT THIS TIME. THANK YOU.

>> MAYOR ISHII: OKAY, THANK YOU. APOLOGIES. OKAY, GO AHEAD, COUNCILMEMBER TREGUB.

>> I. TREGUB: THANK YOU, MADAM MAYOR AND JUST TO CLARIFY, IS THIS QUESTIONS ONLY?

>> MAYOR ISHII: NO THIS IS QUESTIONS AND COMMENTS.

>> I. TREGUB: OKAY, THANK YOU. I WOULD LIKE TO THANK EVERYONE FOR DEVOTING THEIR TIME TO BE WITH US TONIGHT. THANK YOU TO MEMBERS OF THE PUBLIC FOR BEING HERE. AS WELL AS THE MANY MEMBERS OF THE PUBLIC WHO HAVE WRITTEN IN WITH THEIR COMMENTS. I HAVE REVIEWED EVERY SINGLE COMMENT THAT I HAD THE OPPORTUNITY TO REVIEW. LET ME START BY PAINTING A PICTURE. THE CITY HAS A

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DEFICIT THAT IS ONLY LIKELY TO BE AGGRAVATED BY THE CURRENT POLITICAL AND FINANCIAL SITUATION. IN OUR NATION AND THE WORLD. THE CITY MANAGER JUST ISSUED A HIRING FREEZE. BERKELEY IS JUST ONE OF THE AMERICAN CITIES GOING THROUGH THESE FINANCIAL AUSTERITY MEASURES. I ALSO WAS JUST IN A MEETING WITH KEY STATE OFFICIALS AND THE FINANCIAL SITUATION AT THE STATE LEVEL DOES NOT LOOK ANY MORE ROSY. I DID NOT RUN FOR OFFICE TO SHY AWAY FROM DIFFICULT DECISIONS BUT THIS ONE IS UNDOUBTEDLY ONE OF THE HARDEST ONES THAT I HOPE I WILL HAVE TO MAKE. BECAUSE OF ITS IRREVERSIBILITY AND PERMANENT NATURE. I'M A BIG SUPPORTER OF THE ARTS OVERALL AND PERFORMING ARTS IN PARTICULAR. IT BREAKS MY HEART, TRULY, TO EVEN CONTEMPLATE AN OPTION OF DEMOLISHING A BUILDING THAT I HAVE FOND MEMORIES OF GOING TO THE MOVIES IN AS A COLLEGE STUDENT, THAT CAN NEVER BE REPLACED. THE DISTRICT THAT I'M HONORED TO SERVE IS UNIQUE IN ITS RICHNESS AND DIVERSITY OF ART ORGANIZATIONS. PARTICULARLY, IN THE PERFORMING ARTS. I'VE SPOKEN TO MANY REPRESENTATIVES OF THAT INDUSTRY. THE FINANCIAL PICTURE OF MANY ARTS ORGANIZATIONS IS PRETTY GRIM. IF ANYONE WANTS TO BE ABLE TO JOIN ME IN SAVING THE PART OF THE ARTS DISTRICT THAT WE STILL HAVE, WHETHER IT BE THE U.C. THEATER OR THE FREIGHT OR AURORA, OR BERKELEY REP, I URGE YOU TO PLEASE JOIN ME AND CONSIDER SUPPORTING THEM BY COMING TO A MOVIE OR A CONCERT, A SHOW OR A CONCERT THERE. I'VE MET WITH PEOPLE WHO

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AGREE IN CONCEPT THAT HISTORIC BUILDINGS, AND THE U.A. THEATER SHOULD BE PROTECTED AND SAVED. IN REALITY, UNFORTUNATELY, THE CITY HAS NOT RECEIVED ANY OTHER OFFERS OR PROPOSALS FOR THE U.A. THEATER. SO THIS IS THE DILEMMA THAT I, AND MY COLLEAGUES, ARE FACED WITH. DENY THE APPEAL AND FOREGO THE CONSTRUCTION OF HOUSING UNITS THAT WE DESPERATELY NEED, INCLUDING DOZENS OF LOW INCOME UNITS, OR UPHOLDING THE APPEAL IN THE HOPE THAT SOMETHING HAPPENS AND SOMEBODY WITH MILLIONS OF DOLLARS BUYS THIS PROPERTY, REHABILITATES IT, POSSIBLY HAS TO TEAR IT DOWN TO THE STUDS TO REBUILD, AND THEN FINDS A PROFITABLE TO RECREATE THE THEATER IN IT. THE FIRST OPTION PROMISES TO PROTECT AND RESTORE THE FACADE AND THE LOBBY AND PROVIDES HOUSING UNITS. THIS OPTION WILL STOP THE DILAPIDATION OF THE HISTORIC BUILDING. SAVE THE PARTS THAT ARE STILL IN A CONDITION TO BE RESTORED AND ALSO BRING THE CITY TAX REVENUE THAT WE DESPERATELY NEED AS A COMMUNITY. THE SECOND OPTION HAS NO GUARANTIES OF ANYTHING HAPPENING WITHIN THE NEXT SEVERAL YEARS, OR BEYOND THAT. UNFORTUNATELY, I HAVE NOT HEARD ANY CONCRETE OR EVEN POSSIBLY REALISTIC PLANS THAT WOULD MATERIALIZE IN BRINGING THE RIGHT INVESTOR TO PRESERVE THE BUILDING THE WAY THAT IT IS. IF I HAD A MAGIC WAND AND IN THE ABSENCE OF A NEW STATE LAW, AB 1633 I WOULD HAVE GIVEN MORE TIME TO THE PEOPLE WHO ARE SERIOUS ABOUT PRESERVING THE THEATER TO COME UP WITH REALISTIC ACTIONABLE

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LEADS THAT COULD NOT ONLY PRESERVE THE BUILDING BUT ALSO GENERATE THE REVENUE TO SUSTAIN IT AND BRING MUCH-NEEDED REVENUE AND LIVELINESS TO THE CITY AND DISTRICT. THAT IS NOT WHAT IS BEFORE US TONIGHT, HOWEVER. AND I WILL JUST SAY BOTH SUPPORTERS AND OPPONENTS OF THE PROJECT, AND I HAVE LISTENED TO EVERY ONE OF YOUR COMMENTS AND HAVE TAKEN METICULOUS NOTES ON YOUR KEY POINTS. BOTH OF YOU HAVE IMPLORED US TO FOLLOW THE LAW AND DO THE RIGHT THING. IN THE ABSENCE OF ANY CASE LAW ON THE MATTER, AS THIS IS A NEW LAW THAT HAS NOT BEEN TESTED, I AM FOLLOWING THE RECOMMENDATION OF OUR CITY ATTORNEY, WHICH I BELIEVE TO BE LEGALLY SOUND. I WILL ALSO NOTE, THERE WAS A COMMENT ABOUT LOOKING AT LAPSED PERMITS. THIS IS NOT BEFORE US TONIGHT. BUT PLEASE KNOW THAT MY OFFICE IS IN CONVERSATION WITH THE CITY MANAGER AROUND WHAT TO DO IF SOMETHING IS DEMOLISHED AND THEN CONSTRUCTION IS NOT INITIATED WITHIN A REASONABLE AMOUNT OF TIME. BEFORE MY FINAL DECISION TONIGHT, I WOULD LIKE TO ASK STAFF, THE APPLICANT AND APPELLANT A FEW QUESTIONS AND PROVIDE INFORMATION FOR BOTH MY AND THE PUBLIC'S BENEFIT TO BETTER UNDERSTAND THE ISSUE AT HAND. FOR THE STAFF, CAN YOU COMMENT ON THE QUESTION -- THERE WAS A COMMENT THAT WAS MADE ABOUT THE DEVELOPER NOT LEGALLY REQUIRED TO RETAIN THE LOBBY OR THE FEATURES INSIDE THE THEATER THAT ARE DEEMED TO BE HISTORIC AND MUST BE PRESERVED. CAN YOU SPEAK TO THE FIRST IN EFFECT OF

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CONDITIONS OF APPROVAL IN THE ITEM BEFORE US? AS WELL AS WHAT STEPS COULD BE TAKEN SHOULD THERE BE A FAILURE BY THE APPLICANT TO COMPLY WITH SUCH CONDITIONS OF APPROVAL.

>> MAYOR ISHII: REAL QUICK, BEFORE YOU RESPOND, COUNCILMEMBER, CAN YOU GIVE US A SENSE OF HOW MANY QUESTIONS YOU HAVE, IF YOU ARE ASKING BOTH APPLICANT AND APPELLANT I WILL ASK THEM COME TO THE FRONT SO THEY RESPOND.

>> I. TREGUB: THAT'S MY ONLY QUESTION FOR STAFF AND I HAVE THREE QUESTIONS A PIECE FOR THE APPLICANT AND APPELLANT WHICH I WILL ASK IN RAPID-FIRE FORMAT TO SAVE A LITTLE BIT OF TIME.

>> MAYOR ISHII: OKAY, THANK YOU.

>> THANK YOU FOR THE QUESTION, COUNCILMEMBER. SO THE LOBBY IS NOT CONSIDERED IN ANY OF THE STUDIES AS ONE OF THE CHARACTER-DEFINING FEATURES. SO THAT WAS NOT ONE OF THE FEATURES THAT WAS ASKED TO BE PRESERVED AND L.P.C. DID NOT LIST IT AS ONE OF THE FEATURES THAT SHOULD BE PRESERVED IN ITS DESIGNATION. THE ZAB DID ATTACH A CONDITION OF APPROVAL TO THE PERMIT. REQUIRING A HISTORIC RESOURCE INVENTORY OF THE PARTS OF THE BUILDING, I THINK MAINLY THE INTERIOR PARTS OF THE BUILDING THAT SHOULD BE STUDIED AND PUT INTO AN INVENTORY AND SUBMITTED TO LAND USE PLANNING PRIOR TO FINAL DESIGN REVIEW. THE PROJECT, THE INVENTORY NEEDS TO GO TO FINAL DESIGN REVIEW AND BE SUBJECT TO D.R.C. REVIEW BEFORE FINAL DESIGN REVIEW IS APPROVED.

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>> I. TREGUB: THANK YOU. WHAT HAPPENS IF AT THE TAIL END OF THE PROCESS, WHAT ACCOUNTABILITY DOES THE CITY HAVE TO MAKE SURE THAT THE APPLICANT STANDS BY THESE CONDITIONS OF APPROVAL?

>> AS THEY HAVE AGREED TO THE CONDITIONS OF APPROVAL OF THE PERMITS, THE CITY WILL NOT APPROVE THE BUILDING PERMITS UNTIL ALL OF THE CONDITIONS ARE MET.

>> I. TREGUB: THANK YOU, AND D.R.C. IS THE DESIGN REVIEW COMMISSION OF THE CITY. FOR THE APPLICANT, CAN YOU PLEASE DESCRIBE THE STATE OF THE BUILDING? CAN YOU DESCRIBE WHICH HISTORICAL COMPONENTS ARE GOING TO BE PRESERVED AND RESTORED IN THEIR ENTIRETY OR PARTIALLY, IF YOU HAVE THAT INFORMATION AT THE MOMENT? SORRY, FOUR QUESTIONS. CAN YOU PLEASE ELABORATE ON THE CONSTRUCTION TIMELINE THAT YOU ESTIMATE. AND CAN YOU ALSO PLEASE PROVIDE SOME INFORMATION REGARDING THE ESTIMATED REVENUE TO THE CITY AFTER YOUR PROPOSED PROJECT IS COMPLETE?

>> OKAY. IS THIS ON? WELL, THE BUILDING WE ARE PROPOSING IS PROBABLY GOING TO BE WORTH NORTH OF $100-$120 MILLION IN TAXABLE REAL ESTATE. THE CITY'S PROPERTY TAX WOULD PROBABLY BE $2-$3 MILLION A YEAR. AND THE STATE OF THE BUILDING RIGHT NOW, THE THEATER PART OF IT IS, WE HAVE PHOTOGRAPHS OF IT OVER THERE. IT'S NOT DUCTILE UNREINFORCED CONCRETE, IT'S SPARRING, THE REBAR IN IT IS ROTTING AND RUSTING. YOU COULD SEE PHOTOGRAPHS IN MUCH THE SAME CONDITION THE CONDO IN FLORIDA COLLAPSED WHEN THE REBAR

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RUSTED AND IT LOST ITS STRUCTURAL INTEGRITY. THE LOBBY, HOWEVER, IS IN PRETTY DECENT SHAPE, IT DOESN'T SHOW WATER DAMAGE OR SPARRING. THE LOWER ONE THIRD OF IT HAS BEEN REMOVED AND WE WILL BE ADDING NEW STOREFRONT THERE AND THEN RESTORING THE UPPER TWO-THIRDS OF IT, PER THE REQUEST OF THE L.P.C.

>> I. TREGUB: THANK YOU. LET ME JUST MAKE SURE, YEAH. CONSTRUCTION TIMELINE TO THE EXTENT CAN ESTIMATE THAT, GIVEN THE CURRENT SITUATION NATIONALLY?

>> THAT IS VERY HARD TO PREDICT. THE PROPOSED TARIFFS ARE GOING TO SIGNIFICANTLY IMPACT CONSTRUCTION MATERIALS. AND IT'S REALLY A CYPHER RIGHT NOW, TO BE HONEST. WE HAVE NO IDEA WHAT STEEL, LUMBER COMPONENTS FROM MEXICO AND ELSEWHERE ARE GOING TO COST. BUT ASSUMING THAT STABILIZES, ONCE WE BUILD THE BUILDING IT WILL TAKE APPROXIMATELY 24 MONTHS.

>> I. TREGUB: THANK YOU. AND I DO HAVE THREE QUESTIONS FOR THE APPELLANT. COULD YOU PLEASE SHARE SOME SPECIFIC IDEAS THAT YOU THINK ARE WORTH PURSUING IN ORDER TO PROTECT AND REHABILITATE THE THEATER? HAVE YOU ENCOUNTERED ANYONE WHO IS WILLING TO INVEST TIME AND MONEY INTO THE PRESERVATION AND REHABILITATION OF THE THEATER? AND ACCORDING TO THE INFORMATION YOU HAVE, CAN YOU PLEASE SHARE WHAT STRUCTURAL CONDITION THE THEATER IS IN.

>> SO I'M GOING TO ADDRESS, I'M THE ATTORNEY FOR THE APPELLANT, I'M GOING TO ADDRESS THE FIRST QUESTION AND ASK OTHER MEMBERS OF

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THE APPELLANTS TO ADDRESS THE SECOND AND THIRD QUESTIONS.

>> MAYOR ISHII: CAN YOU IDENTIFY THOSE PEOPLE SO THEY CAN START MOVING TOWARDS THE FRONT, PLEASE? OKAY, GO AHEAD.

>> SO IDEAS FOR REHABILITATING, I THINK THAT WAS THE FIRST QUESTION. ONE OF THE THINGS AN E. I. R. WOULD DO WOULD BE INVESTIGATING IDEAS FOR REHABILITATING THE BUILDING. WHAT OTHER FEASIBLE IDEAS THERE MIGHT BE FOR THIS PARTICULAR PROJECT DESCRIPTION. SO I DO NOT HAVE THOSE IDEAS BECAUSE THAT INVESTIGATION HAS NOT HAPPENED. AND EXEMPTING THE PROJECT FROM CEQA WOULD PREVENT THAT INVESTIGATION FROM HAPPENING. THAT'S MY PRESENTATION, THAT INVESTIGATION SHOULD HAPPEN SO THOSE IDEAS CAN BE VETTED PUBLICLY. CEQA HAS A PUBLIC PROCESS WHEN YOU HAVE AN E. I.R. IT'S QUASI BUT IT'S NOT BUILT IN, WHEN YOU HAVE AN EIR THE PUBLIC PARTICIPATION IS BUILT IN AND AT THAT POINT YOU WOULD HAVE A FREE FORUM FOR IDEAS THAT WOULD BE ALTERNATIVE TO THIS PARTICULAR PROJECT.

>> I. TREGUB: THANK YOU.

>> MAYOR ISHII: OKAY, COUNCILMEMBER, YOUR OTHER TWO QUESTIONS WERE FOR THESE FOLKS, I THINK, TO ANSWER.

>> I. TREGUB: WHOEVER WISHES TO ANSWER THEM.

>> I FORGOT TO INTRODUCE MYSELF EARLIER, I'M ROSE ELLIS. AND CAN YOU REFRAME THE QUESTION AGAIN, PLEASE?

>> I. TREGUB: ABSOLUTELY. HAVE YOU ENCOUNTERED ANYONE WHO IS

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WILLING TO INVEST TIME AND MONEY INTO THE PRESERVATION AND REHABILITATION OF THE THEATER? AND ACCORDING TO THE INFORMATION YOU HAVE, CAN YOU PLEASE SHARE WHAT STRUCTURAL CONDITION THE THEATER IS IN.

>> ALAN, COULD YOU COME UP HERE.

>> MAYOR ISHII: WELL, AND WE DID SUBMIT --

>> WELL, AND WE DID SUBMIT A REBUTTAL TO THEIR STRUCTURAL REPORT, IT'S PART OF THE APPEAL, YOU SHOULD HAVE HAD THAT TO READ. THAT WAS WRITTEN BY A COUPLE PEOPLE IN OUR GROUP WHO ARE THEATER HISTORIANS AND ALSO PEOPLE WHO RUN THEATERS.

>> I WILL HAVE ALAN COME UP AND EXPLAIN THE CONDITION OF THE CONCRETE. BUT I JUST WANT TO SAY, IF WE HAD COME UP WITH PEOPLE WHO WANTED TO BUY THIS THEATER, OR COME UP WITH MONEY, WE WOULD HAVE BEEN ACCUSED OF BEING A SELF-INTEREST TRYING TO TAKE OVER THE PROPERTY FROM KENNEDY. SO THAT WAS KIND OF A NO-WIN SITUATION. WE ONLY HAD FIVE MONTHS TO REALLY, I MEAN, I'M SORRY, FIVE HEARINGS TO FIGHT FOR THE THEATER AND WE DON'T FEEL THAT IT WAS OUR PURVIEW, OUR RESPONSIBILITY TO FIND SOMEBODY TO BUY THE BUILDING. WE ARE HERE TO ARGUE ABOUT CEQA AND THE LAW.

>> MAYOR ISHII: I THINK THAT ANSWERS THE COUNCILMEMBERS QUESTION.

>> I JUST WANTED TO ADD TO THAT, WE ARE, WE HAVE BEEN ACCUSED OF RAISING MONEY. WE ONLY RAISED MONEY AT THE END. WE HAVE JUST

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BEEN WORKING BASICALLY OFF NOTHING.

>> MAYOR ISHII: I'M SORRY --

>> THERE'S AN UNFAIR ONUS ON THIS COMMUNITY GROUP TO SUDDENLY BE A DEEP-POCKETED MULTI-MILLION DOLLAR DEVELOPMENT INTEREST TO PROVIDE AN ALTERNATIVE.

>> MAYOR ISHII: I'M SORRY, I DON'T THINK THE COUNCILMEMBER QUESTION --

>> I. TREGUB: I THINK MY QUESTION HAS BEEN ANSWERED, UNLESS THERE'S SOMETHING YOU WANT TO ADD ON THE QUESTION.

>> WE ARE JUST TRYING TO EXPLAIN.

>> MAYOR ISHII: EXCUSE ME, I'M SORRY. I UNDERSTAND, I THINK HIS QUESTION IS WHETHER OR NOT YOU IDENTIFIED. THE OKAY THAT YOU HAVEN'T.

>> THERE'S DEFINITELY, BUT IF YOU DESTROY IT, ALL OPTIONS ARE LOST.

>> I. TREGUB: I UNDERSTAND. ARE YOU GOING TO ANSWER ABOUT THE STRUCTURAL CONDITION?

>> MAYOR ISHII: IF YOU WANT TO SPEAK, I BELIEVE YOUR QUESTIONS ARE ABOUT THE STRUCTURAL --

>> THE STRUCTURE, YES. THE DEVELOPER REFERRED TO AS AN UNREINFORCED CONCRETE BUILDING. THAT'S NOT WHAT THE DEFINITION OF THIS BUILDING IS. UNREINFORCED CONCRETE IS CONCRETE WITHOUT STEEL AND REBAR. THIS BUILDING IS THE SAME CONSTRUCTION AS THE

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GRAND LAKE. WE HAD SOME SPALLING ISSUES AT THE BACK OF MY THEATER A FEW YEARS AGO THAT SORT OF LOOKED LIKE THAT, WHAT YOU DO WHEN YOU HAVE THAT, YOU EXPOSE THE AREA, YOU SAND DOWN THE REBAR, AND THE STEEL TO REMOVE THE RUST, THEN YOU TREAT IT WITH RUST-O-LEUM OR SOMETHING, IT'S WHAT THEY DO ON THE GOLDEN GATE BRIDGE, YEAR IN AND YEAR OUT. IT'S WHAT'S DONE ON ANY 20S OR 30S OR TEENS STEEL AND CONCRETE BUILDING. THAT BUILDING IS A FORTRESS. THE GRAND LAKE IS THE SAME WAY. IT'S STEEL EVERYWHERE AND CONCRETE. IT'S A HIGH-QUALITY BUILDING. YOU CAN'T CALL THAT UNREINFORCED CONCRETE.

>> MAYOR ISHII: I THINK YOU HAVE ADDRESSED THE QUESTION.

>> I. TREGUB: THANK YOU SO MUCH. SO I APPRECIATE EVERYONE GOING INTO DETAIL AND I'VE DONE MY VERY BEST TO REVIEW THE FULL BODY OF THE RECORD AND THE COMMUNICATIONS THAT WE HAVE RECEIVED. WE ARE BOUNDED BY STATE LAW. IT IS FAST-MOVING. AND IT HAS CHANGED IN THIS REGARD. REGARDLESS OF WHAT HAPPENS TONIGHT THOUGH, I THINK WE CAN ALL AGREE, AND WE WILL WELCOME EVERYONE'S ENGAGEMENT AND IDEAS AROUND WHAT WE CAN DO TO ENSURE THE DOWNTOWN REMAINS OR BECOMES AGAIN A VIBRANT, SAFE, ACCESSIBLE, AFFORDABLE DESTINATION. THANK YOU.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. I WILL MOVE ONTO COUNCILMEMBER BARTLETT.

>> B. BARTLETT: THANK YOU, MADAM MAYOR. I WANT TO THANK THE

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PEOPLE FOR YOUR ENERGY TONIGHT. IT'S REALLY, IT WARMS THE HEART TO SEE PEOPLE CARE ABOUT SOMETHING IN OUR COMMUNITY. AND I ALWAYS ENCOURAGE IT, AND THE ARTS ARE VERY SPECIAL TO ME, AND TO US. AND YOU ARE RIGHT, WE SHOULD HAVE A MOVIE THEATER DOWNTOWN. WE SHOULD HAVE THINGS DOWNTOWN. WE SHOULD HAVE PLACES TO WALK TO. THIS CULTURE OF OUR CITY IS ONE OF WALKABILITY AND ENJOYMENT. HOWEVER, IT SEEMS AS IF THIS MOMENT IS NOT THE ONE. AND YOU KNOW, WHILE WE DID LOSE THREE THEATERS IN A SMALL TIME, THE SAME WAY OAKLAND LOST THREE SPORTS TEAMS, NOT A GOOD LOOK, HOWEVER, THIS PROJECT WILL NOT BE THE ONE TO SAVE THAT CONDITION. IT'S OUT OF REACH IN SCALE. THE COST IS PROHIBITIVE. AND THE VERY NATURE OF IT IS JUST BEYOND THE SCOPE OF THIS CITY TO RESCUE. AND THE NATURE OF THIS PROJECT AS WELL AS FAR AS THE COMMERCIAL ASPECT, THAT TRAIN HAS LEFT THE BUILDING. IRRESPECTIVE OF THAT, AND I AGAIN, WANT TO THANK YOU FOR YOUR COMMENTARY, YOUR ENERGY, YOUR RED OUTFITS AND ALL OF THAT. I WANT TO THANK YOU. BUT AGAIN, THIS IS ABOUT CEQA. THIS IS VERY SPECIFIC THING WE ARE SPEAKING OF TODAY. AND YOU KNOW, I WISH YOU HAD BEEN HERE TWO WEEKS AGO. YOU WOULD HAVE SEEN ME FIGHT USING CEQA WITH ALL MY POWERS, AND ALL MY ENERGY, TO REQUIRE ANOTHER LOOK AT BENZENE IN THE SOIL OF A GAS STATION THAT'S BEING DEMOLISHED TO MAKE AN APARTMENT BUILDING. BECAUSE YOU SEE, I WAS CONCERNED ABOUT THE ACTUAL ENVIRONMENTAL QUALITY. TO

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RESIDENTS IN THE BUILDING, NEIGHBORS IN THE BUILDING, WORKERS, AND THE SOIL OF THE BUILDING. BENZENE, IN CASE YOU DON'T KNOW, DESTROYS YOUR NERVOUS SYSTEM AND REALLY GIVES YOU A HORRIBLE LIFE. WHEN YOU APPLY YOUR ENERGIES IN THIS WAY, WHEN YOU MARSHALL RESOURCES IN THE NAME OF CEQA TO CONFRONT WHAT'S REALLY AN EMOTIONAL APPEAL, OR A COMMERCIAL APPEAL, AS OPPOSED TO THE ENVIRONMENT, IT DOES A DISSERVICE TO THAT LAW AND ENDANGERS OUR PEOPLE EVERYWHERE AS IT GETS WEAKENED AS A RESULT. SO TONIGHT, YOU HELPED DISCREDIT A VERY IMPORTANT LAW TO PROTECT OUR CHILDREN AND FAMILIES IN CALIFORNIA.

>> [OFF MIC]

>> MAYOR ISHII: OKAY, FOLKS. EXCUSE ME. YOUR TIME TO SPEAK IS OVER. GO AHEAD COUNCILMEMBER.

>> B. BARTLETT: I WANT TO THANK YOU FOR YOUR ENERGY AND ADMONISH YOU TO STICK TO THE TRUE ISSUE AT PLAY HERE. THANK YOU.

>> MAYOR ISHII: OKAY, MOVING ONTO COUNCILMEMBER BLACKABY.

>> B. BLACKABY: THANKS, MADAM MAYOR. I JUST HAD A FEW QUESTIONS AND THEN SOME COMMENTS. AND I'LL START. AGAIN, THANKS TO THE STAFF FOR THE PRESENTATION, THE APPELLANT AND APPLICANT AND THE COMMUNITY FOR BEING HERE. I WANT TO FOCUS QUICKLY ON SLIDE 10. I KNOW THIS APPEARS THROUGHOUT THE RECORD AS WELL. BUT HELP ME UNDERSTAND, THIS IS IN THE DISCUSSION OF THE HISTORIC LANDMARK. CAN YOU TALK ABOUT SIGNIFICANT LOSS OF INTEGRITY? STRUCTURAL,

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WHAT IS THAT?

>> I MAY LET THE APPLICANT GIVE A LITTLE BIT MORE INFORMATION ON THIS. THEY MAY HAVE THEIR HISTORIC RESOURCE EXPERT BE ABLE TO SPEAK MORE ON THIS. I BELIEVE THE INTEGRITY IS IN REFERENCE TO THE ABILITY OF THE CHARACTERISTICS, THE REMAINING FEATURES IN THE BUILDING TO CONVEY THE SIGNIFICANCE OF THE HISTORIC RESOURCE. THERE HAVE BEEN A NUMBER OF ALTERATIONS OF THE BUILDING OVER TIME, THROUGHOUT THE DECADES AND SINCE IT'S BEEN DESIGNATED A HISTORIC RESOURCE IN THE STATE REGISTER. THAT HAVE DIMINISHED THE FEATURES OF THE BUILDING AND DIMINISHED THEIR CAPACITIES TO CONVEY THE HISTORIC SIGNIFICANCE OF THE BUILDING.

>> B. BLACKABY: I AGREE. LOOK, WE DO, AS A COUNCIL, HAVE AN OBLIGATION TO FOLLOW THE LAW. I THINK MY COLLEAGUES ARE THINKING ABOUT THAT AND WRESTLING WITH THAT VERY CAREFULLY. AND AS ITS DEMONSTRATED UNDER SB 1630 AND AB 1633 AND HOW IT INTERACTS WITH CEQA. AS I UNDERSTAND KIND OF WHAT WE ARE TO DO TONIGHT, AS WE CONSIDER THIS APPEAL IS REALLY CONSIDERING WHETHER THE PROJECT'S ELIGIBILITY FOR THE IN-FILL DEVELOPMENT EXEMPTION IS CORRECT. AND WHETHER OR NOT THE PROJECT MEETS THE CRITERIA FOR THE HISTORICAL RESOURCE EXCEPTION. THAT'S REALLY OUR FUNCTION, AS I UNDERSTAND IT. AND I'VE LISTENED A LOT, KIND OF TO THE PRESENTATION AND ARGUMENTS AND I READ IN THE EXPERTS. THE LAST QUESTION I WOULD ASK, I WOULD ASK THIS TO STAFF AND EACH THE

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SAME QUESTION OF THE APPLICANT AND APPELLANT. BECAUSE, AGAIN, I THINK THERE'S BROAD AGREEMENT THAT PRESERVING THE FACADE IS VALUABLE AND IS PRESERVING AN ELEMENT THAT DOES CONVEY HISTORIC SIGNIFICANCE. I THINK PRESERVING ELEMENTS OF THE LOBBY. MY QUESTION TO EACH OF THE PARTIES, IS THE AUDITORIUM, IN ITS CURRENT STATE, A CHARACTER-DEFINING FEATURE THAT CONVEYS HISTORIC SIGNIFICANCE?

>> STAFF, AS WELL AS THE CITY'S CONSULTANT FOUND THERE'S SUBSTANTIAL EVIDENCE THAT THE AUDITORIUM NO LONGER IS A CHARACTER-DEFINING FEATURE AND NO LONGER CONVEYS THE SIGNIFICANCE OF THE BUILDING.

>> B. BLACKABY: AND THAT'S BECAUSE OF THE CURRENT, THE CURRENT MANIFESTATION OF IT, THE REPAIR, THE QUALITY OF THE ENVIRONMENT.

>> THE STATE AND QUALITY OF THE AUDITORIUM AS IT IS, HAVING UNDERGONE ALL THE ALTERATIONS OVER THE YEARS.

>> B. BLACKABY: CAN I ASK THE APPLICANT TO ANSWER THE SAME QUESTION, IS THE AUDITORIUM IN ITS CURRENT STATE, IN YOUR VIEW, A CHARACTER-DEFINING FEATURE THAT CONTINUES TO CONVEY HISTORIC SIGNIFICANCE? I WILL ASK THE APPELLANT TO ALSO ANSWER THE SAME QUESTION. I JUST WANT EVERYBODY'S VIEWS ON THIS SAME PIECE.

>> THIS PHOTOGRAPH HERE SHOWS HOW THE ONCE 13,000 SEAT THEATER HAS BEEN CARVED UP INTO FOUR NEW THEATERS. THE CEILING HAS BEEN DESTROYED. THE DECORATIVE MOLDINGS THROUGHOUT THE SIDES. AND THE

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STAGE AND ELSEWHERE HAVE ALL BEEN REMOVED AND DESTROYED. AND THAT HAS BEEN CATALOGED, ACTUALLY, BY THE ARCHITECTURAL HISTORIAN WHO SAYS THAT THE PROSCENIUM AND AUDITORIUM HAS BEEN ALTERED. THE ORIGINAL THEATER ORGANS AND GRILL HAVE BEEN DESTROYED. THE ATRIUM AND DECORATIVE FINISHES HAVE BEEN DESTROYED. THE LOBBY AND MURALS HAVE BEEN ALTERED. THE ORIGINAL THEATER SEATS AND LOUNGES HAVE BEEN ALTERED. ESSENTIALLY ALL OF THE CHARACTER-DEFINING -- ALL OF THE CHARACTER FEATURES IN THE ORIGINAL THEATER HAVE BEEN REMOVED OR DESTROYED. THE LOBBY AND THE FACADE ARE THE SOLE REMAINING PORTIONS OF THE BUILDING THAT ARE CAPABLE OF BEING RESTORED TO THEIR ORIGINAL, CLOSE TO THEIR ORIGINAL STATUS. THE REST OF THE BUILDING HAS BEEN MODIFIED BEYOND RECOGNITION. AND REPAIR. THE BUILDING ALSO, I DID MISSPEAK WHEN I SAID IT WAS NON-REINFORCED CONCRETE, IT'S NON-DUCTAL, WHICH IS MINIMAL STEEL REINFORCEMENT, BUT ALSO A SEISMIC HAZARD TO THE CITY AND TO THE ADJACENT PROPERTIES.

>> MAYOR ISHII: THANK YOU, I THINK YOU HAVE ADDRESSED THE QUESTION.

>> B. BLACKABY: AND I WOULD ASK THE APPELLANT.

>> MAYOR ISHII: I'M HESITANT TO HAVE THESE QUESTIONS BE OPPORTUNITIES FOR PEOPLE TO EXTEND THEIR PRESENTATION. I JUST WANT TO ASK THAT PEOPLE BEYOND TO THE QUESTIONS DIRECTLY AND TRY TO STAY ON TOPIC.

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>> B. BLACKABY: THANK YOU. THIS, TO ME, IS THE CRUX OF THE WHOLE ARGUMENT. I JUST REALLY-- BUT I AGREE WITH YOU, THANK YOU.

>> SO THE INFORMATION I HAVE IS THE ANSWER TO THE QUESTION IS YES. I WILL JUST READ TO YOU FROM THE CONCLUSION OF THE RINCON REPORT, THE CITY'S OWN CONSULTANT, WHICH IS THE SECOND REPORT THAT THEY DID. AND IT SAID SEVERAL ASPECTS OF THE DISTINCTIVE ART DECO DESIGN ARE PROPOSED TO BE RETAINED, THE PROPOSED DEMOLITION OF THE THEATER AUDITORIUM WOULD RESULT IN LOSS OF INTEGRITY, DESIGN, MATERIALS, WORKMANSHIP, FEELING AND ASSOCIATION, IT WOULD NO LONGER REFLECT HISTORIC SIGNIFICANCE FOR ITS ROLE IN DEPRESSION-ERA IN DOWNTOWN BERKELEY, SPECIFICALLY AS ENTERTAINMENT FOR MOTION PICTURES. SO THAT'S WHAT YOUR CONSULTANT SAID. THERE'S ALSO TWO GENTLEMEN HERE, ALAN MICHAND HEARD FROM EARLIER WHO KNOWS WHAT IT LOOKS LIKE FROM PERSONAL EXPERIENCE. AND PARKS WHO HAS PERSONAL VISUAL EXPERIENCE OF THE CEILING.

>> THE QUESTION THAT WAS ASKED IS WHETHER THERE IS ARCHITECTURAL VALUE IN THE AUDITORIUM IN WHAT IS THERE. I WOULD LIKE TO USE THE DEVELOPER'S EXHIBIT RIGHT HERE. IF YOU LOOK, THIS IS WHAT IS GOING ON ABOVE THE CEILING OF THE NEW AUDITORIUMS IN THERE. THE ORIGINAL CEILING IS INTACT. IT'S SUSPENDING THE CEILINGS OF THE MULTIPLEX AUDITORIUMS BY WIRES THAT HAVE BEEN PLACED UP THROUGH INTO THE ATTIC AND TIED OFF TO THE STEEL AND REBAR IN THE ATTIC.

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ALSO HERE, YOU CAN SEE ELEMENTS OF THE MAJOR PROSCENIUM ARE INTACT. I HAVE SEEN THEATERS RESTORED AROUND THE COUNTRY WHERE THERE'S BEEN EXTENSIVE WATER DAMAGE OVER THE COURSE OF THE DECADES AND MELTED MUCH OF THE ORNAMENTAL PLASTER, THE LOWES KING IN BROOKLYN IS A PERFECT EXAMPLE OF THAT. IT WAS AN ABSOLUTE WRECK BEFORE RESTORATION, IT'S NOW THE PRIDE OF THAT BOROUGH. PLEASE ENVISION THIS THEATER AS SOMETHING THAT CAN HOST BROADWAY-TOURING SHOWS. IT CAN BE RESTORED AND IT SHOULD BE.

>> MAYOR ISHII: THANK YOU.

>> B. BLACKABY: THANK YOU. APPRECIATE THE ANSWERS. AND I KNOW THERE'S AGAIN RESPONSES TO SOME OF THOSE CRITICISMS IN THE LEFT COAST REPORT I FIND USEFUL, WHICH SAYS THE STATEMENT CHARACTERIZING THE THEATER SPACE FAILS TO ACKNOWLEDGE THE LOSS OF AUDITORIUM'S INTEGRITY AND SUBSEQUENT INABILITY TO BE A CHARACTER-DEFINING FEATURE OF THE SPACE ANY LONGER. THAT THE NATIONAL REGISTER SUPPORTS THE CONCLUSION THAT THE INTERIOR DOESN'T QUALIFY AS CHARACTER DEFINING ESPECIALLY TAKING INTO ACCOUNT IT'S CURRENT CONDITION. THERE'S BEEN SOME DISCUSSION ABOUT THAT ON THE RECORD. BUT AGAIN, I APPRECIATE THE CONVERSATION. LET ME FINISH UP WITH MY COMMENTS. LET ME JUST SAY, MY LIVED EXPERIENCE, AS SOMEONE WHO LOVES THE ARTS, PARTICIPATES IN THE ARTS, VALUES THE ARTS AND ROLE OF THE ARTS HERE IN BERKELEY, I HAVE BEEN A CHORAL SINGER MY ENTIRE LIFE, I

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MET MY PARTNER LARRY IN OUR COLLEGE CHORUS. I SANG WITH SYMPHONY IN SAN FRANCISCO FOR 15 YEARS, A FREQUENT ATTENDEE OF ARTS IN BERKELEY. I FIRMLY BELIEVE THAT DOWNTOWN BERKELEY MUST CONTINUE TO BE A THRIVING ARTS ECOSYSTEM. AND WE HAVE TO FOSTER IT. I TOTALLY AGREE WITH THAT AND I WANT TO DEDICATE MY TIME ON THE COUNCIL TO DOING EVERYTHING I CAN TO MAKE THAT POSSIBLE. BUT WE ALSO, I HAVE TO SEPARATE SOME OF THE BUSINESS ARGUMENT AND SOME OF THE HISTORICAL ARGUMENT FROM THE LEGAL ISSUE IN FRONT OF US. I DO THINK THE RECORD, I KNOW THERE IS SOME DISPUTE BY I'M COMFORTABLE WITH WHAT STAFF HAS COME UP WITH ON THE RECORD HERE. I DON'T THINK THIS IS THE END OF THE DISCUSSION ABOUT THE ROLE OF THE ARTS IN BERKELEY. BUT AS, I THINK, MY COLLEAGUE, COUNCILMEMBER BARTLETT SAID, THIS JUST MAY NOT BE THE PARTICULAR PROJECT WHERE WE CAN ACCOMPLISH THAT PARTICULAR GOAL. BUT IT IS A WORTHY GOAL. AND I SHARE THE VISION THAT PEOPLE HERE HAVE. I JUST THINK THAT GIVEN THE CIRCUMSTANCES AROUND THIS PARTICULAR PROJECT AND ALL OF THE ELEMENTS OF IT, THE DISCUSSION ABOUT THE HISTORICAL VALUE AND THE LAW IS TELLING US TO DO, I WILL SUPPORT STAFF'S RECOMMENDATION HERE. SO THANK YOU.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. COUNCILMEMBER LUNAPARRA?

>> C. LUNAPARRA: THANK YOU. I AM GRATEFUL TO THIS PLACE AND CELEBRATE THE MEMORIES THAT HAVE BEEN CREATED HERE. AND I HEAR

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THE PASSION AND ENTHUSE AM OF EVERYONE WHO HAS SPOKEN HERE TONIGHT. AND I LOVE AMERICAN HISTORY AND ARCHITECTURAL HISTORY AND I CAN SEE HOW THIS BUILDING EXEMPLIFIES THAT. I ALSO WISH THAT WE LIVED IN A WORLD WHERE A MOVIE THEATER WAS PROFITABLE OR A POSSIBLE BUSINESS TO HAVE HERE, BUT WE DON'T. AND WE CANNOT KEEP OUR CITY AS A MUSEUM. SOME OF MY CONSTITUENTS ARE FORCED TO LIVE IN THEIR CARS OR COUCH SURF. RENTS HAVE GONE DOWN PARTLY DUE TO HOUSING DEVELOPMENT AT ALL INCOME LEVELS. WE STILL HAVE WORK TO DO. SOMEONE JOKED STUDENTS WON'T LIVE IN THIS TOWER. THE ALTERNATIVE HISTORICALLY HAS BEEN SLEEPING IN CARS OR FOUR PEOPLE TO ONE BEDROOM APARTMENT OR DOUBLE THE PRICE OF NEW MARKET RATE UNITS. I HEAR PEOPLE WANT AFFORDABLE HOUSING, 27 UNITS OF VERY LOW-INCOME UNITS IS A LOT AND MORE THAN THE ZERO WE HAVE NOW. THE CITY WILL BE BUILDING 100% AFFORDABLE HOUSING WITH MITIGATION FEES. THIS HOUSING IS INCREDIBLY EXPENSIVE TO BUILD AND TO BE ABLE TO MEET THE URGENT HOUSING NEEDS OF OUR COMMUNITY, WE MUST LEVERAGE THE CAPITAL AVAILABLE TO US. I RECOGNIZE OUR POSITION HERE TODAY SPECIFICALLY ON THE ARGUMENTS MADE BY THE APPELLANTS, WHICH I AGREE WITH ANALYSIS OF OUR LEGAL DEPARTMENT AND PLANNING DEPARTMENT AND WILL BE SUPPORTING THE DENIAL OF THE APPEAL. THANK YOU.

>> MAYOR ISHII: I JUST WANT TO CHECK AND SEE IF ANYONE HAS ANY MORE QUESTIONS FOR THE APPLICANT OR FOR THE APPELLANT. BECAUSE

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IF NOT, I WOULD LIKE TO CLOSE THE PUBLIC HEARING ITSELF. NO? OKAY. THEN I WOULD LIKE TO CLOSE THE PUBLIC HEARING. WE NEED A MOTION FOR THAT. LET ME MOVE BACK.

>> B. BLACKABY: I MOVE WE CLOSE THE PUBLIC HEARING.

>> SECOND.

>> CITY CLERK: OKAY, TO CLOSE THE PUBLIC HEARING, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN IS ABSENT. BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: YES.

>> CITY CLERK: AND ISHII.

>> MAYOR ISHII: YES.

>> CITY CLERK: PUBLIC HEARING IS CLOSED.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER LUNAPARRA FOR YOUR

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COMMENTS. AND COUNCILMEMBER HUMBERT?

>> M. HUMBERT: THANK YOU, MADAM MAYOR. EXCUSE ME. FIRST, I DO WANT TO SAY AS COUNCILMEMBER TREGUB SAID THAT I'VE LOOKED THROUGH THE RECORD VERY, VERY CAREFULLY. AND I THINK I'VE READ MOST, IF NOT ALL OF THE HUNDREDS OF COMMENTS THAT HAVE COME IN. IT'S POSSIBLE THAT I MISSED A COUPLE, BUT I REALLY TRIED TO BE VERY DILIGENT IN READING ALL THE PUBLIC COMMENTS AND LISTENING TONIGHT. I WANT TO TAKE A STEP AWAY VERY QUICKLY FROM THE QUASI JUDICIAL ROLE THAT WE OCCUPY HERE. AND THE LEGAL QUESTIONS REALLY THAT ARE BEFORE US TONIGHT. I COMPLETELY UNDERSTAND WHY PEOPLE WANT TO SEE THE UNITED ARTISTS CONTINUE TO SERVE AS A MOVIE THEATER. AS THE ONLY COUNCILMEMBER WHO STILL HAS A FIRST-RUN MOVIE THEATER IN HIS DISTRICT, THE ELMWOOD, I'M EXTREMELY SYMPATHETIC TO THE SENSE OF LOSS THAT CAME WITH THE CLOSURE OF THIS CULTURAL INSTITUTION. AND WHICH WILL COME WHEN THE REAR OF THE BUILDING IS DEMOLISHED? I KNOW I WOULD PERSONALLY BE DEVASTATED IF THE ELMWOOD CINEMA WERE TO CLOSE. BUT REALITY IS THAT CINEMAS ARE AN INCREDIBLY TOUGH BUSINESS RIGHT NOW. THERE WAS TIME A TYPICAL U.S. RESIDENT WOULD GO TO THE MOVIES AT LEAST ONCE A WEEK, NOW MAJORITY ONLY GO A HANDFUL OF TIMES A YEAR, 65% WOULD RATHER WATCH MOVIES AT HOME AND PEOPLE PREFER WITH EXTRA LARGE SCREENS WITH SOUND THAT OUR OLD THEATERS USUALLY CAN'T ACCOMMODATE. BUT OUR ROLE ISN'T TO MERIT ON THE ROLES OF

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THEATERS IN THE DOWNTOWN OR BERKELEY SPECIFICALLY. I WANTED TO ADDRESS THIS. MOVIE THEATERS ARE AN INCREDIBLE COMMUNITY ASSET BUT EVERY EFFORT WE HAVE MADE TO KEEP CINEMAS IN BERKELEY HAVE VIRTUALLY FALLEN FLAT IN FACE OF THESE HEAD WINDS. THOUGH THESE CAN'T BE TAKEN INTO ACCOUNT WHEN WE ADJUDICATE WHETHER IT'S MET ALL APPLICABLE REQUIREMENTS, I WANT PEOPLE TO KNOW I APPRECIATE PEOPLE'S THOUGHTS AND PASSION. WHAT WE NEED TO CONSIDER IS IF THE PROJECT HAS MET STANDARDS AND REQUIREMENTS AND CAN THEREFORE MOVE FORWARD. I FEEL DIRECTOR KLEIN AND PLANNING STAFF HAVE DONE AN EXCELLENT JOB REVIEWING AND TAKE IT THROUGH THE APPROPRIATE PROCESSES. THE PRESENTATION TONIGHT SUMMARIZED THE ISSUES BEFORE US AND AFFIRMING THE ZAB DECISION IS THE SENSIBLE APPROACH, IN MY VIEW. I THEREFORE WON'T BELABOR THE POINTS THEY PRESENTED THIS EVENING AND IN THE STAFF REPORT AND I'VE NOT HEARD ANYTHING IN THE PUBLIC TESTIMONY TONIGHT THAT WOULD LEAD ME TO BELIEVE THAT THE STAFF REPORT IS INACCURATE OR THAT THE ZAB'S APPROVAL OF THE PROJECT WAS WRONGLY DECIDED. HAVING REVIEWED THE STAFF REPORT AND ATTENDED INFORMATION, LISTENED TO TESTIMONY TONIGHT, I BELIEVE THE PROJECT CONFORMS TO THE APPLICABLE REGULATIONS AND PROCEDURES AND WE MUST MOVE IT FORWARD PER THE REQUIREMENTS OF STATE LAW. THE PROPOSED PROJECT WOULD MAINTAIN AND RESTORE THE FEATURES THAT HAVE BEEN IDENTIFIED AS CONTRIBUTING TO THE HISTORIC RESOURCES AND I BELIEVE THAT SATISFIES WHAT WOULD BE

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REQUIRED AND SUFFICIENTLY ADDRESSES ANY CEQA ISSUE. THANK YOU. I'LL BE SUPPORTING IT. THE STAFF PROPOSAL, THE ZAB DECISION.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. COUNCILMEMBER O'KEEFE?

>> S. O'KEEFE: THANK YOU, MAYOR. MANY PEOPLE TONIGHT PORTRAYED THE U.A. THEATER AS THIS LAST GREAT CULTURAL VENUE THAT WE ARE LOSING. AND WE WILL HAVE A DESERTED DOWNTOWN. AND, OKAY, U.C. THEATER, BERKELEY REP, AURORA THEATER, PACIFIC FILM ARCHIVE, FREIGHT AND SALVAGE, THE MARSH, BACK ROOM, CORNERSTONE. THAT'S JUST DOWNTOWN. GO A HALF MILE OUT AND THERE'S MORE. WE HAVE PROBLEMS DOWNTOWN. WE HAVE VACANT STOREFRONTS BUT CULTURAL VENUES ARE NOT THE PROBLEM. IT'S THE VACANT STOREFRONTS THAT ARE THE PROBLEM THAT MAKE IT FEEL DEAD. THAT'S WHAT THE U.A. THEATER IS DOING RIGHT NOW. AND IT'S NOT GOING TO COME BACK AS IT WAS. I UNDERSTAND HOW HARD IT WAS, IT IS TO SAY GOODBYE TO THIS PLACE FULL OF MEMORIES. I HAVE SEEN PROBABLY 50 MOVIES THERE. BUT CHANGE IS INEVITABLE. DOES ANYONE HERE REMEMBER EDIE'S ICE CREAM PARLOR? YEAH, I STILL GRIEVE THAT PLACE. I THINK IT CLOSED IN 1992. I MEAN, I FEEL YOU. I DON'T DISREGARD YOUR FEELINGS. IT'S VERY SAD TO SAY GOODBYE. MY SON LOVES THE U.A. THEATER BECAUSE HE THOUGHT THEY HAD THE BEST-TASTING WATER AT THE WATER FOUNTAIN. I DON'T KNOW WHY, BUT THAT MAKES ME CRY TO THINK ABOUT IT GOING AWAY.

>> [OFF MIC]

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>> S. O'KEEFE: BUT THE THING IS, IF WE WANT THOSE CULTURAL VENUES TO SURVIVE AND WE WANT A VIBRANT DOWNTOWN, WE HAVE TO MOVE TOWARDS GROWTH. WE HAVE TO SAY GOODBYE TO THIS. IT'S NOT COMING BACK. AND WE NEED TO INSTEAD BRING MORE PEOPLE DOWNTOWN. AND SUPPORT THE VIBRANCY OF OUR CITY. I'M CASTING MY VOTE TO DENY THE APPEAL, SUPPORT THE ZAB DECISION BECAUSE I REALLY, HONESTLY, BELIEVE ALL THINGS CONSIDERED THIS IS THE IN BEST INTEREST OF THE FUTURE OF OUR CITY. THANK YOU.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. I JUST WANT TO CHECK AND MAKE SURE COUNCILMEMBER KESARWANI DOESN'T HAVE ANY COMMENTS OR DOESN'T HAVE HER HAND RAISED?

>> R. KESARWANI: NO, I DO NOT. I'M READY TO VOTE.

>> MAYOR ISHII: THANK YOU. THANKS, SO JUST SOME BRIEF COMMENTS, AS EVERYONE SAID, I REALLY LOVE THE THEATER, I'M REALLY SAD WE DON'T HAVE ANY MOVIE THEATERS DOWNTOWN. I SUPPORT THIRD SPACES, MY PARENTS WERE IN THE FILM INDUSTRY, I GREW UP WITH IT MY WHOLE LIFE. BUT I ALSO UNDERSTAND OUR NEED FOR HOUSING AND TRUST OUR STAFF AND THEIR ANALYSIS. I WANT TO COMMENT ABOUT THE AERIAL 3D VIEW BEING FRAUDULENT, THIS WAS SUPPOSED TO BE ABOUT THIS PROJECT. THINGS CHANGE ON THE MAP AROUND IT. WHAT THEY SHARED WAS NOT FRAUDULENT. AND AS WAS MENTIONED EARLIER WITH COUNCILMEMBER TREGUB, WE DON'T HAVE FUNDS TO SAVE THIS THEATER. THE FOX THEATER WAS FUNDED WITH REDEVELOPMENT FUNDS, I BELIEVE.

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THESE ARE FUNDS WE JUST DON'T HAVE. I REALLY DO WANT TO ENCOURAGE FOLKS TO SUPPORT SOME OF OUR OTHER SPACES HERE BUT I'M ALSO IN SUPPORT OF MOVING FORWARD WITH STAFF'S RECOMMENDATIONS, SO WITH THAT I WILL ASK IF THERE'S A MOTION. IF WE NEED A MOTION.

>> S. O'KEEFE: SO MOVED. I MOVE THE STAFF REPORT, THE STAFF RECOMMENDATION.

>> M. HUMBERT: SECOND.

>> MAYOR ISHII: A SECOND FROM COUNCILMEMBER HUMBERT. THANK YOU. AND SINCE WE HAVE FOLKS ONLINE, I WILL ASK CLERK TO TAKE THE ROLL, PLEASE.

>> CITY CLERK: OKAY, TO AFFIRM THE DECISION OF THE ZONING ADJUSTMENTS BOARD AND REJECT THE APPEAL, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN IS ABSENT. BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB?

>> I. TREGUB: AYE.

>> CITY CLERK: O'KEEFE?

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES.

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>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YES.

>> CITY CLERK: AND MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: OKAY, MOTION CARRIES.

>> MAYOR ISHII: THANK YOU, FOLKS. I WOULD LIKE TO SEE IF THERE'S --

>> B. BLACKABY: I MOVE WE ADJOURN.

>> SECOND.

>> MAYOR ISHII: OKAY, THANK YOU.

>> CITY CLERK: ON THE MOTION TO ADJOURN, COUNCILMEMBER KESARWANI?

>> R. KESARWANI: YES.

>> CITY CLERK: BARTLETT?

>> B. BARTLETT: YES.

>> CITY CLERK: --

>> MAYOR ISHII: EXCUSE ME, BUT NOW IS NOT YOUR TIME TO SPEAK. EXCUSE ME. YOU CAN WAIT UNTIL AFTERWARDS, OUR MEETING HAS NOT YET ADJOURNED.

>> CITY CLERK: COUNCILMEMBER O'KEEFE TO ADJOURN?

>> S. O'KEEFE: YES.

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>> CITY CLERK: BLACKABY?

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA?

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT?

>> M. HUMBERT: YES.

>> CITY CLERK: MAYOR ISHII?

>> MAYOR ISHII: YES.

>> CITY CLERK: MEETING IS ADJOURNED.

>> MAYOR ISHII: MEETING IS ADJOURNED. THANK YOU. [RECORDING STOPPED] [ADJOURNED 8:51P.M.]

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